

AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT				1. CONTRACT ID CODE		PAGE 1 OF 91 PAGES	
2. AMENDMENT/MODIFICATION NUMBER A002		3. EFFECTIVE DATE 5/6/26		4. REQUISITION/PURCHASE REQUISITION NUMBER		5. PROJECT NUMBER (If applicable) CA FLAP SCR T5(1A)	
6. ISSUED BY FEDERAL HIGHWAY ADMINISTRATION CENTRAL FEDERAL LANDS HIGHWAY DIVISION 12300 WEST DAKOTA AVENUE, SUITE 360 LAKEWOOD, COLORADO 80228 ATTENTION: KELLY PALMER		7. ADMINISTERED BY (If other than Item 6)		CODE			
8. NAME AND ADDRESS OF CONTRACTOR (Number, street, county, State and ZIP Code)				(X)		9A. AMENDMENT OF SOLICITATION NUMBER 6982AF26R000002	
				(X)		9B. DATED (SEE ITEM 11) 4/14/26	
				()		10A. MODIFICATION OF CONTRACT/ORDER NUMBER	
CODE		FACILITY CODE				10B. DATED (SEE ITEM 13)	

11. THIS ITEM ONLY APPLIES TO AMENDMENTS OF SOLICITATIONS

☒ The above numbered solicitation is amended as set forth in Item 14. The hour and date specified for receipt of Offers ☒ is extended. ☐ is not extended.

Offers must acknowledge receipt of this amendment prior to the hour and date specified in the solicitation or as amended, by one of the following methods:

(a) By completing items 8 and 15, and returning 1 copies of the amendment; (b) By acknowledging receipt of this amendment on each copy of the offer submitted; or (c) By separate letter or electronic communication which includes a reference to the solicitation and amendment numbers. FAILURE OF YOUR ACKNOWLEDGMENT TO BE RECEIVED AT THE PLACE DESIGNATED FOR THE RECEIPT OF OFFERS PRIOR TO THE HOUR AND DATE SPECIFIED MAY RESULT IN REJECTION OF YOUR OFFER. If by virtue of this amendment you desire to change an offer already submitted, such change may be made by letter or electronic communication, provided each letter or electronic communication makes reference to the solicitation and this amendment, and is received prior to the opening hour and date specified.

12. ACCOUNTING AND APPROPRIATION DATA (If required)

13. THIS ITEM APPLIES ONLY TO MODIFICATIONS OF CONTRACTS/ORDERS. IT MODIFIES THE CONTRACT/ORDER NUMBER AS DESCRIBED IN ITEM 14.

CHECK ONE	A. THIS CHANGE ORDER IS ISSUED PURSUANT TO: (Specify authority) THE CHANGES SET FORTH IN ITEM 14 ARE MADE IN THE CONTRACT ORDER NUMBER IN ITEM 10A.
()	
()	B. THE ABOVE NUMBERED CONTRACT/ORDER IS MODIFIED TO REFLECT THE ADMINISTRATIVE CHANGES (such as changes in paying office, appropriation data, etc.) SET FORTH IN ITEM 14, PURSUANT TO THE AUTHORITY OF FAR 43.103(b).
()	C. THIS SUPPLEMENTAL AGREEMENT IS ENTERED INTO PURSUANT TO AUTHORITY OF:
()	D. OTHER (Specify type of modification and authority)

E. IMPORTANT: Contractor ☐ is not ☒ is required to sign this document and return 1 copies to the issuing office.

14. DESCRIPTION OF AMENDMENT/MODIFICATION (Organized by UCF section headings, including solicitation/contract subject matter where feasible.)

1. The response due date is hereby changed to 05/22/2026.
2. Replace Part 1 Section C Specifications pages C-1 through C-87 with attached pages C-1 through C-88.
3. Replace Plan Sheet C4 with the attached Plan Sheet C4.
4. Replace Plan Sheet T1 with the attached Plan Sheet T1.

Except as provided herein, all terms and conditions of the document referenced in Item 9A or 10A, as heretofore changed, remains unchanged and in full force and effect.

15A. NAME AND TITLE OF SIGNER (Type or print)		16A. NAME AND TITLE OF CONTRACTING OFFICER (Type or print)	
15B. CONTRACTOR/OFFEROR	15C. DATE SIGNED	16B. UNITED STATES OF AMERICA	16C. DATE SIGNED
(Signature of person authorized to sign)		(Signature of Contracting Officer)	

CA FLAP SCR T5(1A)
MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

Section 101. — TERMS, FORMAT, AND DEFINITIONS

101.01 Meaning of Terms. These specifications are generally written in the imperative mood. In sentences using the imperative mood, the subject, "*the Contractor*", is implied. Also implied in this language are "*shall*", "*shall be*", or similar words and phrases. In material specifications, the subject may also be the supplier, fabricator, or manufacturer supplying material, products, or equipment for use on the project. Wherever "*directed*", "*required*", "*prescribed*", "*requested*", or "*ordered*" are used, the "*direction*", "*requirement*", "*prescription*", or "*order*" of the Contracting Officer is intended. Wherever something is to be "*submitted*" or "*submitting to*", the Contracting Officer is intended. Similarly, wherever "*approved*", "*acceptable*", "*suitable*", "*satisfactory*", or similar words are used, the words mean "*approved by*", "*acceptable to*", or "*satisfactory to*" the Contracting Officer.

The word "*will*" generally pertains to decisions or actions of the Contracting Officer.

101.02 Specifications Format. These specifications are divided into 10 Divisions. Division 100 consists of general contract requirements for which no direct payment is made. The requirements contained in Division 100 apply to all contracts.

Division 150 consists of project contract requirements that apply to all contracts. Work under Division 150 is paid for directly or indirectly according to Subsection 109.05. If there is no pay item in the bid schedule, no direct payment is made.

Divisions 200 through 600 consist of construction contract requirements for specific items of work. Work under these Divisions is paid for directly or indirectly according to Subsection 109.05. If there is no pay item in the bid schedule, no direct payment is made.

Division 700 contains the material requirements for Divisions 150 through 600. No direct payment is made in Division 700. Payment for material is included as part of the work required in Divisions 150 through 600.

The first three digits of the pay item number in the bid schedule identify the Section under which the work is performed.

101.03 Abbreviations. When these abbreviations are used, they represent the following:

(a) Acronyms.

3D — Three-Dimensional

AASHTO — American Association of State Highway and Transportation Officials

ACI — American Concrete Institute

ANSI — American National Standards Institute

ASTM — American Society for Testing and Materials (ASTM International)

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

AWG — American Wire Gauge

BCM — Baseline Construction Schedule

BMP — Best Management Practice

CFR — Code of Federal Regulations

CO — Contracting Officer and authorized representatives

CDR — Contractor's Daily Record

CPM — Critical Path Method

CTSM — Contingent Sum

EPA — Environmental Protection Agency

FAR — Federal Acquisition Regulations (48 CFR Chapter 1)

FHWA — Federal Highway Administration

FLH — Federal Lands Highway

GPS — Global Positioning System

GSA — General Services Administration

LPSM — Lump Sum

NTP — Notice to Proceed

OSHA — Occupational Safety and Health Administration

PVC — Polyvinyl Chloride

QA — Quality Assurance

QC — Quality Control

QCM — Quality Control Manager

QCP — Quality Control Plan

RECP — Rolled Erosion Control Product

SDS — Safety Data Sheet

SF — Standard Form

CA FLAP SCR T5(1A)
MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

SWPPP — Storm Water Pollution Prevention Plan

TAR — Transportation Acquisition Regulations (48 CFR Chapter 12)

U.S. — United States

U.S.C. — United States Code

(b) Unit abbreviations and symbols.

°F	—	degree Fahrenheit	temperature
ft	—	feet	length
ft²	—	square feet	area
ft³	—	cubic feet	volume
gal	—	gallon	volume
in	—	inches	length
in²	—	square inches	area
in³	—	cubic inches	volume
lb	—	pound	mass
mi	—	mile	length
min	—	minute	time
oz	—	ounces	mass
ppm	—	parts per million	concentration
psi	—	pounds per square inch	pressure
sec	—	second	time
yd	—	yards	length
yd²	—	square yards	area
yd³	—	cubic yards	volume

(c) Slope notation. Slopes are expressed as the ratio of vertical to horizontal (V:H).

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

101.04 Definitions. Unless otherwise specified, the following terms are defined as follows:

Absolute Cover – The percentage of the ground covered by the vertical projection of the plant crowns of a defined set of plants as viewed from above.

Award — The written acceptance of a bid by the CO.

Backfill — Material used to replace or the act of replacing material removed during construction. Material placed or the act of placing material adjacent to structures.

Bid — A written offer by a bidder to perform work at a quoted price.

Bidder — An individual or legal entity submitting a bid.

Bid Guarantee — A form of security assuring that the bidder will not withdraw a bid within the period specified for acceptance and will execute a written contract and provide required bonds.

Bid Schedule — The prepared schedule included with the bid forms, containing the estimated quantities of pay items for which unit bid prices are invited.

Commercial Certification — See Subsection 106.03.

Completion Date — The date by which all contract work is to be complete.

Construction Limits — The limits that establish the area disturbed by construction operations and beyond which no disturbance is allowed.

Contract — The written agreement between the Government and the Contractor setting forth the obligations of the parties for the performance of and payment for the prescribed work.

Contracting Officer — An official of the Government with the authority to execute, administer, and terminate contracts, and make related determinations and findings. The term includes authorized representatives of the CO acting within the limits of their authority as delegated by the CO.

Contract Modification — A written change in the terms of the contract. Contract modifications are of the following forms:

(a) **Administrative change.** A unilateral contract change, in writing, that does not affect the substantive rights of the parties (such as a change in the paying office or the appropriation data).

(b) **Change order.** A written order, signed by the CO, directing the Contractor to make a change that FAR Clause 52.243-1 Changes-Fixed-Price authorizes the CO to order without the Contractor's consent.

(c) **Supplemental agreement.** A contract modification that is accomplished by the signature of the CO (unilateral contract modification) or by the signature of the CO and the Contractor (bilateral contract modification).

Contractor — The individual or legal entity contracting with the Government for performance of

CA FLAP SCR T5(1A)
MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

prescribed work.

Contract Time — The specified time allowed for completion of the contract work.

Cross-Section — A vertical section of the ground or structure at right angles to the centerline or baseline of the roadway or other work.

Day — A calendar day starting and ending at midnight.

Drawings — Design sheets or fabrication, erection, shop drawing, or construction details submitted to the CO by the Contractor according to FAR Clause 52.236-21 Specifications and Drawings for Construction. Also refers to submissions and submittals.

Federal Land Management Agencies — Federal agencies including, but not limited to, the National Park Service, U.S. Forest Service, U.S. Fish & Wildlife Service, U.S. Army Corps of Engineers, Bureau of Land Management, and Bureau of Reclamation.

Final Acceptance — The point at which the Government formally accepts the work and relieves the Contractor of further responsibility for the maintenance of the project. This excludes warranties, which remain in effect until they expire. See FAR Clause 52.212-4 Contract Terms and Conditions – Commercial Products and Commercial Services (o) Warranty.

Government — The Government of the United States of America.

Highway, Street, or Road — A general term denoting a public way primarily designed for purposes of multimodal travel.

Masterworks — A web-based system used by the Government, Contractors, and Subcontractors on this Government contract to prepare CDRs, measurement notes (pay notes and field measurement documentation), and transmit submittals, and documents and drawings.

Material — Substances specified or necessary to complete the contract work.

Measurement — The process of identifying the dimensions, quantity, or capacity of a pay item. See Section 109 for measurement methods, terms, and definitions.

Notice to Proceed — Written notice to the Contractor to start the contract work.

Offeror — An individual or legal entity submitting a bid.

Pay Item — A specific item of work consisting of a unit, quantity, and method of measurement furnished by the Government and a price established by the contract.

Payment Bond — The security executed by the Contractor and surety or sureties and provided to the CO to ensure payments as required by law to persons supplying labor or material according to the contract.

Performance Bond — The security executed by the Contractor and surety or sureties and provided to the CO to guarantee completion of the contract work.

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

Plans — The contract plans furnished by the Government showing the location, type, dimensions, and details of the work.

Production Certification — See Subsection 106.03.

Professional Engineer — Engineers holding valid state licenses permitting them to offer engineering services directly to the public. Engineers that are experienced in the work for which they are responsible, take legal responsibility for their engineering designs, and are bound by a code of ethics to protect the public health.

Project — The specific section of the property on which construction is to be performed under the contract.

Right-of-Way — Real property necessary for the project, including roadway, buffer areas, access, and drainage areas.

Shop Drawings — See "Drawings"

Solicitation — The complete assembly of documents (whether attached or incorporated by reference) furnished to prospective bidders.

Specifications — The written requirements for performing work.

Standard Form — Numbered form issued by the GSA for use as contract documents.

Subcontract — The written agreement between the Contractor and an individual or legal entity setting forth the obligations of the parties for the performance of and payment for a specific portion of the work to be performed by the subcontractor.

Subcontractor — An individual or legal entity with which the Contractor sublets part of the work. This includes subcontractors and material suppliers in all tiers.

Substantial Completion — For mitigation site work, the point at which all initial construction activities, including but not limited to selective clearing, grading, planting, seeding, mulching, fencing, and gate installation are complete, and the only remaining work is the multi-year plant maintenance period.

Superintendent — The Contractor's on-site representative who has authority to act for the Contractor and is responsible for directing and supervising construction operations on behalf of the Contractor.

Surety — An individual or corporation legally liable for the debt, default, or failure of a Contractor to satisfy a contract obligation.

Work — The providing of labor, material, equipment, and other incidentals necessary to complete the project according to the contract.

Section 102. — BID, AWARD, AND EXECUTION OF CONTRACT

102.01 Acquisition Regulations. Bid, award, and execution of the contract is governed by the FAR and TAR.

102.02 Preparation of Proposal. Follow the requirements of FAR Provision 52.212-1 Instructions to Offerors - Commercial Products and Commercial Services.

Insert a numeric unit proposal price for each pay item for which a quantity appears in the schedule. Multiply the unit price by the quantity for each pay item and show the amount proposed. If mathematical checks made by the Government show a mistake in the amount proposed, the corrected unit price extension governs.

If "*LPSM*" appears as a unit of measure in the bid schedule, insert an amount bid for each lump sum pay item.

If "*CTSM*" appears as a unit of measure in the bid schedule, include the Government inserted amount for the pay item in the total bid amount.

Total the amounts bid for each pay item and show the total bid amount.

The quantities listed in the schedule are approximate, unless designated as a contract quantity, and are used for the comparison of bids. Payment will be made for the actual quantities of work performed and accepted or material provided according to the contract. The scheduled quantities may be increased, decreased, or deleted. Bid schedule quantities are considered the original contract quantities.

102.02A Physical Data.

Data and information furnished or referred to below is for the Contractor's information. The Government is not responsible for any interpretation of, or conclusion drawn from the data or information by the Contractor.

(a) The indications of physical conditions on the drawings and in the specifications are the result of site investigations by:

(1) Final Hydrologic and Hydraulic Technical Memorandum.

(b) Weather conditions: Contact the National Weather Service.

102.03 Bid Guarantee. Follow the requirements of FAR Clause 52.228-1 Bid Guarantee.

102.04 Individual Surety. Follow the requirements of FAR Clause 52.228-11 Individual Surety-Pledge of Assets.

Complete and date the SF 28, *Affidavit of Individual Surety* after the solicitation date. The individual surety shall personally sign the SF 28. Bidders cannot serve as their own surety. See FAR 28.203 Individual Sureties.

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

After reviewing the SF 28, the CO may request the surety to submit further documentation with respect to its assets, debts, or encumbrances. The information may be required to be provided under oath. Failure of the surety to respond with the requested documentation within 7 days of receipt of the request is cause for rejection of the surety.

Any material misstatement by the surety, overstatement of assets (either as to ownership or value), or understatement of liabilities is cause for rejection of the surety. Substitution of individual sureties to support a bid bond after the bid opening will not be allowed.

Provide documentary evidence as to the ownership and value of the assets pledged in support of the bond and details of the security interest in the assets by the individual sureties for the apparent low bidder within 14 days after the opening of bids. Failure to submit evidence within the time required will be grounds for declaring the surety unacceptable.

After reviewing the SF 28 and documentary information on the security interest and the assets pledged, the CO may request the surety to submit further information and documents with respect to the documents submitted. The information may be required to be provided under oath. Failure of the surety to respond with the requested information or documents within 7 days of receipt of the request is cause for rejection of the surety.

102.05 Not Used.

102.06 Performance and Payment Bonds. Follow the requirements of FAR Clause 52.228-16 Performance and Payment Bonds - Other than Construction.

Use SF 25, *Performance Bond* and SF 25A, *Payment Bond* for submitting the bonds.

Follow the requirements of Subsections 102.03 and 102.04.

Submit the documentary evidence for individual sureties at the same time as the Affidavit of Individual Surety and security interest in assets pledged. A Contractor submitting an unacceptable individual surety in satisfaction of a performance or payment bond before the issuance of the NTP will be allowed one opportunity to substitute an acceptable surety or sureties within 7 days of receipt of notification that the surety is unacceptable.

The Government's right to direct the substitution of sureties to ensure the continuing acceptability of the bonds during the performance of the contract according to FAR Clause 52.228-2 Additional Bond Security is not restricted.

The requirements of this Subsection are in addition to the requirements in FAR 28.2, except where in conflict with the requirements in the FAR, in which case the FAR supersedes the requirements of this Subsection.

The bond amounts may be reduced when the CO issues substantial completion for grading, planting, seeding, and fencing; and the only remaining work will be maintenance of the site to ensure viability of the vegetation.

Section 103. — SCOPE OF WORK

103.01 Intent of Contract. The intent of the contract is to provide for completion of the work described in the contract documents. The precise details of performing the work are not described, except as considered essential for the successful completion of the work. Provide labor, material, equipment, tools, transportation, and supplies necessary to complete the work according to the contract.

103.02 Disputes. Follow the requirements of FAR Clause 52.233-1 Disputes (Alternate I).

103.03 Not Used.

103.04 Contractor Records. Follow the requirements of FAR Clause 52.222-8 Payrolls and Basic Records.

Upon request, provide records related to the contract to the Government for up to 3 years after final payment or for longer periods as provided by law.

Include a provision in subcontracts at all tiers giving the Government the same rights as provided above with respect to the subcontractor's records.

103.05 Partnering. To facilitate the contract, the CO offers to participate in a partnership with the Contractor. This partnership draws on the strengths of each organization to identify and achieve reciprocal goals. Partnering strives to resolve problems in a timely, professional, and non-adversarial manner. If problems result in disputes, partnering encourages, but does not require, alternative dispute resolution instead of the formal claim process. The objective is effective and efficient contract performance to achieve a quality project within budget and on schedule.

Acceptance of this partnering offer by the Contractor is optional, and the partnership is bilateral.

If the partnering offer is accepted by the Contractor, mutually agree with the CO on the level of organizational involvement and the need for a professional to facilitate the partnering process. Engage the facilitator and other resources for key Contractor representatives and the CO to attend a partnership development and team-building workshop. Hold additional progress meetings upon mutual agreement.

The direct cost of partnering facilities, professional facilitation, copying fees, and other miscellaneous costs directly related to partnering meetings will be shared by the Contractor and Government. Secure and pay for facilities, professional fees, and miscellaneous requirements. Submit invoices to the CO. The Government will reimburse the Contractor for 50 percent of the agreed costs incurred for the partnering process. The Government's share will not exceed \$5,000.

Each party is responsible for making and paying for its own travel, lodging, and meal arrangements. No time extension for the completion of the project will be made for the use of partnering. No changes to the contract can result from discussions during partnering sessions.

Section 104. — CONTROL OF WORK

104.01 Authority of the Contracting Officer. As stated in FAR 1.402-1(a), the CO has authority to execute, administer, or terminate contracts and make related determinations and findings. The CO may delegate authority to representatives to decide on acceptability, progress, and suspension of work, interpretation of the contract, and acceptable fulfillment of the contract.

104.02 Authority of Contracting Officer's Representative. As stated in FAR 1.404, CORs will be designated in writing by the CO to act on behalf of the CO to administer the contract. The COR will administer the contract according to the contract documents and the FAR. The COR lacks authority to make commitments outside of the terms of the contract; issue changes that affect price, quality, quantity, delivery, or other terms and conditions of the contract; or direct the Contractor or its subcontractor to operate in conflict with the contract terms and conditions.

104.03 Authority of Inspectors. Inspectors are authorized to inspect work, including the preparation, fabrication, or manufacture of material for the project. Inspectors are not authorized to alter or waive contract requirements, issue instruction contrary to the contract, act as foreperson for the Contractor, or direct the Contractor's operations. Inspectors have the authority to identify non-conforming work until the issue can be referred to and decided by the CO. An inspector is permitted to stop work in circumstances of imminent and substantial risk of death or injury.

104.04 Electronic Documentation. Provide documents and drawings electronically using Masterworks.

Request the *Masterworks User Account Form* (Form Masterworks-001) and submission instructions. Complete and electronically submit Form Masterworks-001 for each individual requiring Masterworks access. Allow 7 days for system access.

Contact the CO to schedule a training session on the use of Masterworks. The virtual training session will be either a video presentation or live training as determined by the CO. The Contractor is responsible for training additional staff that were not present during the original training session.

Maintain active Masterworks accounts for all Contractor staff who use Masterworks. Notify the CO within 24 hours after an account holder is reassigned or no longer employed by the Contractor and submit a Form Masterworks-001 requesting their account be disabled.

Provide documents and drawings in their native file format (the format produced by the software that the document and drawing was created in) upon request.

Documents and drawings include but are not limited to correspondence, submittals, measurement notes, reports, plans, diagrams, qualifications, certifications, payrolls, schedules, invoices, notifications, requests, permits, and agreements.

Provide a resolution quality with color, text, and lines clearly discernible. Submit each document and drawing in an individual file. Name files with a unique document name.

Documents and drawings delivered after 5:00 pm local time will be considered received on the next business day.

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

The CO will reject documents that are unreadable, corrupted, illegible, or include malicious content.

104.05 Signatures for Electronic Documentation. Sign documents requiring a signature by electronic signature or by wet signature.

(a) Definitions.

(1) Electronic signature. A computer data compilation of symbols or series of symbols executed, adopted, or authorized by an individual to be the legally binding equivalent of the individual's handwritten signature.

(2) Wet signature. A signature of ink from pen, or a scanned copy of an actual signature of ink from pen.

(b) Electronic signature. Unless the CO requests a wet signature, an electronic signature may be provided. Assume responsibility for the validity of electronic signatures. The Government will assume that the authorized individual's electronic signature is authentic.

Provide electronic signatures in the following formats:

(1) A digital signature from an encryption application;

(2) A digitized image of a paper signature; or

(3) A unique form or individual identification that can be used as a means of authenticating a record, record entry, or document.

(c) Wet signature. After signing a document by wet signature, scan the complete document into an electronic format.

104.06 Specifications and Drawings. Follow the requirements of FAR Clause 52.236-21 Specifications and Drawings for Construction.

(a) General. Submittals include both documents and drawings required to construct the work. Review submittals for accuracy, completeness, and compliance with the contract. Submittals that do not include evidence of Contractor review and verification may be returned for resubmission.

Time for approval starts over when submittals are returned for revision or when additional information is requested. Perform work related to submitted documents or drawings only after they are approved. Obtain written approval before changing or deviating from the approved submittals.

Submit documents and drawings according to Subsection 104.04.

(1) Drawings. Drawings include:

(a) Layouts that show the relative position (vertical and horizontal as appropriate) of work to be performed;

(b) Fabrication details for manufactured items and assemblies;

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

- (c) Installation procedures;
- (d) Details of systems;
- (e) Traffic control implementation drawings;
- (f) Methods for performing work near existing structures or other areas to be protected; and
- (g) Calculations that support each drawing.

Show drawing dimensions in the same units as shown in the plans. Limit drawings to a maximum size of 24 by 36 inches. Include the project number, name, and other identification as shown in the contract on each drawing and calculation sheet.

Drawings will be reviewed in the order they are received. Allow 30 days for approval of drawings. Submit additional drawings for unique situations to clarify layout, construction details, or method if requested.

(2) Documents other than drawings. Documents other than drawings include descriptive literature, illustrations, schedules, performance and test data, certifications, and similar material submitted to certify or explain specific portions of the work required by the contract. Allow 14 days for approval unless otherwise specified.

(b) As-built drawings. Maintain a separate set of plans exclusively for as-built drawings. Use the color "red" to identify changes. Use approved methods to record changes accurately and neatly. Include details and notes on additional information discovered during construction. Note additions or revisions to the location, character, and dimensions of work. Strikeout details shown that are not applicable to the completed work.

Retain as-built drawings at the project site or an alternate location as approved.

Keep as-built drawings current and maintain a revision log of changes made. Check and initial plan sheets that were incorporated in the completed work without change. Meet with the CO to jointly review as-built drawings and log for accuracy, completeness, and legibility before submission of each monthly invoice. The CO may retain a portion of the progress payment if as-built drawings are not current.

Submit as-built drawings and revision logs before the final inspection. Correct errors and omissions found during the final inspection and resubmit as-built drawings for approval within 7 days after the final inspection.

When as-built drawings are approved, submit the final as-built drawings according to Subsection 104.04.

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

Include the following in the final as-built drawings:

(1) Title sheet.

- (a) "AS-BUILT DRAWINGS" (bold text);
- (b) Name of Contractor;
- (c) Project completion date;
- (d) Revisions to project length;
- (e) Revisions to begin and end stations of project;
- (f) Revisions to index to sheets;
- (g) Plan notes; and
- (h) A note stating, "Work was constructed as designed unless otherwise noted."

(2) Summary of quantities and tabulation sheets.

- (a) Revisions to quantities, locations, notes, remarks, including totals;
- (b) Strikeout unused pay items; and
- (c) Revisions to application rates.

(3) Planting sheets. Note additions or revisions to the location, character, and dimensions of the following items:

- (a) Fencing layout and gate locations;
- (b) Planting boundary and acreage;
- (c) Plant species and quantities; and
- (d) Construction limits.

(4) Grading sheets. Note additions or revisions to the location, character, and dimensions of the following items:

- (a) Grading limits; and
- (b) Pothole locations.

(5) Standard and detail sheets. Note the additions or revisions to the character and dimensions of details.

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

104.07 Coordination of Contract Documents. The FAR, TAR, Specifications, and Plans are contract documents. A requirement in one document is binding as though occurring in all the contract documents. The contract documents are intended to be complementary and to describe and provide for a complete contract. In case of discrepancy, calculated and shown dimensions govern over scaled dimensions. The contract documents govern in the following order:

- (a) FAR;
- (b) TAR;
- (c) Specifications; and
- (d) Plans.

104.08 Load Restrictions. Follow the requirements of FAR Clause 52.236-10 Operations and Storage Areas.

Comply with legal load restrictions while hauling material and equipment on public roads and bridges to and from the project. Regardless of the legal or posted load limit, control loads to prevent damage to existing and new infrastructure within the project limits.

Obtain necessary oversize or overweight vehicle permits and escorts for moving oversized or overweight loads. Provide a copy of the permits and associated loading calculations for roads and bridges within the project limits. A special permit does not relieve the Contractor of liability for damage resulting from moving or using material or equipment to or within the job site.

Unless otherwise permitted, do not operate equipment or vehicles that exceed the legal load limits over new or existing structures, or pavements within the project. Ensure loads do not damage subgrade or utilities.

Replace or restore infrastructure damaged during operations to original condition.

104.09 Not Used.

104.10 Inspection at the Nursery. Work may be inspected at the point of propagation and growing for plant material. Nursery plants may be inspected for compliance with the project's specified growing methods and California's License to Sell Nursery Stock requirements per California Food and Agricultural Code § 6721. **Up to ten plant samples of each species may be obtained for laboratory DNA testing for compliance with genetic quality requirements.** Allow entry during normal operating hours to the parts of the nursery producing the work.

104.11 Other Contracts. Follow the requirements of FAR Clause 52.236-8 Other Contracts.

Section 105. — CONTROL OF MATERIAL

105.01 Source of Supply and Quality Requirements. Follow the requirements of FAR Clause 52.236-5 Material and Workmanship. Select sources and submit acceptable material. Notify the CO of proposed sources before delivery to the project to expedite material inspection and testing. Do not incorporate material requiring submittal into the work until approved.

Material may be approved at the source of supply before delivery to the project. Provide source quality test results dated within 12 months from NTP. Approval of a material source does not constitute acceptance of material submitted from the source. If an approved source fails to supply acceptable material during the life of the project, further use of that source may be denied.

Submit samples of material for source quality verification testing for material if requested.

Certify, according to Subsection 107.10(d), that sources of rock, sand, gravel, earth, subsoil, or other natural material imported into the project construction limits are noxious weed free.

105.02 Material Sources.

(a) Government-listed sources. The Government may list possible material sources. The Government makes no representation as to the quality or quantity of materials, or rights to the availability of material from these sources. These sources are considered to be Contractor-located sources under (b) below.

The Government has acquired the rights to remove plant seeds and plant cutting material from the Bureau of Land Management (Cotoni-Coast Dairies National Monument) and California State Parks (Wilder Ranch) property identified in the contract. Do not perform work within a source until a source development plan is approved per Section 626.03. Comply with the right of entry agreement acquired by the Government for California State Parks property (see Appendix).

(b) Contractor-located sources. The Contractor is responsible for Contractor-located material sources, including established commercial material sources. Use sources that fulfill the contract quantity and quality requirements. Determine the quantity, type of equipment, and work necessary to select and produce an acceptable material. Secure permits and clearances for use of the source and submit copies of the documents to the CO. Follow the environmental requirements of Subsection 107.10(d). Submit available historical data indicating acceptable material can be produced from the source.

105.03 Material Source Management. Notify the CO at least 14 days before starting operations in the source. Develop and operate according to the approved source development plan for Government-listed sources or written agreement for Contractor-located sources.

Dispose of rejected material in an approved manner.

105.04 Handling and Storing Material. Handle and store material to preserve its quality and fitness for the work. Stored material approved before storage may again be inspected before use in the work. Locate

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

stored material to facilitate prompt inspection.

Use only approved portions of the construction limits for storing material or equipment. Provide additional space as needed. Do not use private property for storage without written permission of the owner or lessee. Submit copies of agreements and documents.

For Contractor-located, non-commercial staging, storing, and material handling areas, secure environmental clearances according to Subsection 107.10.

Provide security for stored material.

Restore Government-furnished storage sites to their original condition.

Use products according to the manufacturer's recommendations for handling, storage, and disposal. Follow the requirements of FAR Clause 52.236-10 Operations and Storage Areas and FAR Clause 52.236-12 Cleaning Up. Maintain the staging and storage areas in a clean, neat, and orderly condition.

Store construction, building and waste materials, and containers in designated areas indoors or protect with a suitable covering.

Keep the manufacturer's SDS, an inventory of the material, and emergency numbers near the storage area. Take appropriate measures to ensure that incompatible chemicals are not stored next to each other.

Store construction materials within the limits shown in the plans. Properly store materials according to the applicable permit. Check the storage areas weekly and according to the applicable permit.

Submit a site map showing the material storage and stockpile locations at least 14 days before the start of construction activities.

105.05 Not used.

105.06 Material Source Restoration. Restore ground disturbances caused by access to Government-furnished sources for willow stake harvesting. Do not measure restoration of ground disturbances for payment.

Section 106. — ACCEPTANCE OF WORK

106.01 Conformity with Contract Requirements. Follow the requirements of FAR Clause 52.212-4 Contract Terms and Conditions - Commercial Products and Commercial Services (b) Inspection/Acceptance.

References to standard documents and test methods of AASHTO, ASTM, GSA, and other recognized standard authorities refer to the documents and methods in effect on the date of the Invitation for Bids (IFB) or Request for Proposal (RFP).

Use the FLH Testing Forms for reporting materials test results unless otherwise approved. Use the FLH Test Methods in effect on the date of the IFB or RFP for testing materials, when applicable.

Use ASTM E29, Absolute Method, for test results and related calculations.

Perform work to the lines, grades, cross-sections, dimensions, and processes or material requirements shown in the contract.

Incorporate manufactured material into the work according to the manufacturer's recommendations or to these specifications, whichever is stricter.

If standard manufactured items are specified (such as fence, wire, plates, rolled shapes, and pipe conduits that are identified by gauge, density, or section dimensions) the tolerances for masses or dimensions will be established manufacturing tolerances unless otherwise noted.

Plan dimensions and contract specification values are the values to be strived for and complied with as the design values from which deviations are allowed. Perform work and provide material that is uniform in character and reasonably close to the prescribed value or within the specified tolerance range. The purpose of a tolerance range is to accommodate occasional minor variations from the median zone that are unavoidable for practical reasons.

The Government may inspect, sample, or test any work, at any time before acceptance of the entire work. If the Government tests work, copies of test reports will be provided to the Contractor upon request. Government tests may or may not be performed at the work site.

Work will be evaluated for conformance to contract requirements and will be designated as follows:

(a) Conforming work. Acceptable work conforming to the Contract will be paid for at the contract price per unit of measurement. Four methods of determining conformity and accepting work are described in Subsections 106.02 through 106.05. The primary method of acceptance is specified in the Acceptance Subsection of each Section, but work may be rejected if it is found not to comply with the contract.

(b) Nonconforming work. Remove, repair, or replace work at no additional cost to the Government that does not conform to the contract or to prevailing industry standards where no specific contract requirements are noted. Provide temporary traffic control and perform other related work to correct nonconformities at no additional cost to the Government.

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

As an alternative to removal and replacement, the Contractor may submit a written request for approval that includes the following:

(1) Alternatives.

- (a) Have the work accepted at a reduced price; or
- (b) Perform corrective measures to bring the work into conformity.

(2) Supporting rationale and documentation. Include references or data justifying the proposal based on an evaluation of test results, effect on service life, value of material or work, quality, aesthetics, and other tangible engineering basis.

The CO will determine disposition of the nonconforming work.

If the accuracy of Government test results is disputed, inform the CO. If the dispute is unresolved after reasonable steps are taken to resolve the dispute, further evaluation may be obtained by written request.

Where sample and testing procedures refer to AASHTO, ASTM, or other standards (designated as FLH T), use the procedure as modified in the FLH *Field Materials Manual*.

106.02 Visual Inspection. Acceptance is based on visual inspection of the work for compliance with the contract. Use prevailing industry standards in the absence of specific contract requirements or tolerances.

Material accepted by visual inspection may be sampled and tested for conformance.

106.03 Certification. For material manufactured off site, use a manufacturer with an ISO 9000 certification or an approved testing and inspection system. Require the manufacturer to clearly mark the material or packaging with a unique product identification or specification standard to which it is produced.

Other than references in or to the FAR or Federal Law, when the Standard Specifications or Special Contract Requirements reference certifications, certificates, certified documents, equipment, or individuals; the references refer to documentation of non-regulatory, peripheral contract requirements that are required to be validated by an individual or organization having unique knowledge or qualifications to perform such validation.

See Table 106-1 for schedule for full or partial acceptance by material certification. Submit certification and sample of material for testing as required.

Check certifications before incorporating the material into the work to ensure that the requirements of the contract have been met. Mark the certifications with the following information: project number and name; pay item number and description; date; and Contractor-signed certification stating “to the best of our knowledge the materials certified by the attached certification represent the materials incorporated into the work of this contract”.

Material accepted by certification may be sampled and tested for conformance.

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

Provide a commercial certification unless a production certification is identified in the Acceptance Subsection.

(a) Commercial certification. A commercial certification is a manufacturer's or Contractor's representation that the material complies with the contract. The representation may be labels, catalog data, stamped specification standards, or supplier's certifications indicating the material is produced to a commercial standard or specification.

Submit one commercial certification for similar material from the same manufacturer.

(b) Production certification. A production certification is a supplier's certification that the material has been produced to a specific standard and is accompanied by test data performed within the past 12 months and other information as described below to support that the material complies with the contract.

Submit a production certification from the manufacturer for each shipment of material. Include the following:

(1) Date and place of manufacture;

(2) Lot number or other means of cross-referencing to the manufacturer's inspection and testing system; and

(3) Substantiating evidence that the material conforms to the contract as required by FAR 46.105(a)(4), including the following:

(a) Test results on material from the same lot and documentation of the inspection and testing system;

(b) A statement from the manufacturer that the material complies with the contract; and

(c) Manufacturer's signature or other means of demonstrating accountability for the certification.

Table 106-1
Schedule For Full or Partial Acceptance by Materials Certification

Section	Description	Material	Material Property Or Specification	Certification Frequency	Sample Frequency
707	Metal Pipe	As specified	As applicable	1 per shipment	–
710	Fencing and Mesh Fabrics	As specified	As applicable	1 per shipment	–
713	Roadside Improvement Material	As specified	As applicable	1 per shipment	–
725	Miscellaneous Material	As specified	As applicable	1 per shipment per material type	–

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

106.04 Measured or Tested Conformance. Perform necessary measurements and tests to ensure work complies with the contract.

Use prevailing industry standards in the absence of contract requirements or tolerances.

Submit measurements, tests, and supporting data for acceptance.

If Government testing is performed on work, the results may be used for acceptance purposes.

106.05 Not used.

106.06 Partial and Final Acceptance. Maintain the work during construction and until the project is accepted. Repair damage before final acceptance of the entire project at no additional cost to the Government. See FAR Clause 52.236-11 Use and Possession Prior to Completion.

(a) Partial acceptance. When a segment of the project is completed, a final inspection of that segment may be requested by the Contractor. If the segment is complete and in compliance with the contract, it may be accepted. If accepted, the CO may relieve the Contractor of further responsibility for maintenance of the completed segment.

When public traffic is accommodated through construction and starts using sections of roadway as they are completed, continue maintenance of such sections until final acceptance.

(b) Final acceptance. Notify the CO when the entire project is complete to schedule an inspection. If work is determined to be complete, the inspection will constitute the final inspection. The Contractor will be notified in writing of final acceptance as of the date of the final inspection. Final acceptance relieves the Contractor of further responsibility for the maintenance of the project.

If the inspection discloses unsatisfactory work, the CO will provide to the Contractor a list of the work that is incomplete or requires correction. Immediately complete or correct the work. Submit notification when the work has been completed.

Section 107. — LEGAL RELATIONS AND RESPONSIBILITY TO THE PUBLIC

107.01 Laws to be Observed. Follow the requirements of FAR Clause 52.236-7 Permits and Responsibilities.

Comply with applicable laws, ordinances, safety codes, regulations, orders, and decrees. Protect and indemnify the Government and its representatives against claim or liability arising from or based on the alleged violation of the same.

Comply with permits and agreements obtained by the Government for performing the work that is included in the contract. Notify CO of proposed changes, including required revisions to Government-obtained permits that are required by the Contractor's methods of operation. Obtain additional permits or agreements that are required by the Contractor's methods of operation. Submit copies of approved permits and finalized agreements upon receipt.

(a) National Pollutant Discharge Elimination System (NPDES). Comply with the requirements of the applicable Construction General Permit (CGP) as shown in Table 107-1. The applicable CGP is California.

Prepare a Stormwater Pollution Prevention Plan (SWPPP) according to Section 157. If the current CGP expires during the contract, amend the SWPPP when a new permit goes into effect to meet new permit conditions.

Obtain a separate NPDES permit associated with industrial activity for mobile asphalt and concrete plants that provide material for the project. Provide a copy of the permit and acknowledgement letter to the CO.

(1) Notice of Intent (NOI). After the SWPPP is approved, file the NOI according to the applicable CGP as shown in Table 107-1. Allow the regulatory review period, shown in Table 107-1, from submittal of NOI to receipt of authorization of coverage under the CGP. Provide a copy of the NOI and confirmation letter to the CO.

Post all project authorization numbers near the entrance to the site and on the bulletin board.

(2) Payment of permit fees. Submit the appropriate permit fees and renewal fees required for both the Contractor and Government to the regulatory agency.

(3) Notice of Termination (NOT). If applicable, file a NOT when the conditions listed in the CGP have been met or transfer the NOI to the maintaining agency after final acceptance.

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

**Table 107-1
NPDES Permits**

State / Agency	Permit Number and Link	Effective Date	Expiration Date	Regulatory Review Period
California ⁽¹⁾	2022-0057-DWQ	9/1/2023	8/31/2028	7 days

(1) Upload the SWPPP to the California Water Boards Stormwater Multiple Application and Report Tracking System (SMARTS) and complete the NOI application previously started by the Government. Notify the CO once the NOI application is complete. Do not certify the NOI.

107.02 Protection and Restoration of Property and Landscape. Follow the requirements of FAR Clause 52.236-9 Protection of Existing Vegetation, Structures, Equipment, Utilities, and Improvements.

Do not disturb the area beyond the construction limits.

(a) Property. Preserve public and private property. Protect monuments established for perpetuating horizontal, vertical, cadastral, or boundary control. If necessary to destroy a monument, reestablish the monument according to applicable state statute or by the direction of the agency or individual who established the monument.

(b) Vegetation. Replace trees, shrubs, or vegetated areas damaged by construction operations as directed and at no additional cost to the Government. Remove damaged limbs of existing trees by an approved arborist.

(c) Archeological. Do not excavate, remove, damage, alter, or deface archeological or paleontological remains or specimens. Control the actions of employees and subcontractors on the project to ensure that protected sites are not disturbed or damaged. Should these items be encountered, suspend operations at the discovery site, notify the CO immediately and continue operations in other areas. The CO will inform the Contractor when operations may resume at the discovery site.

If human remains are encountered during construction, immediately suspend operations in the area and notify the CO. The CO will notify the proper authorities and agencies. If a stop work order is given for the discovery of remains, The CO will notify the Contractor when operations at the location(s) of discovery may resume.

(d) Utilities. Before starting work in an area, contact the local utility locating service to mark the utilities. Protect utilities from construction operations.

If utility services are interrupted because of damage by the construction, immediately notify the utility owner, the CO, and other proper authorities. Cooperate with them until service is restored. Repair any damage to utilities, including those that are the property of a third party.

Satisfactorily repair damage due to the fault or negligence of the Contractor at no additional cost to the Government. If the Contractor fails or refuses to repair the damage promptly, the CO may have the necessary work performed and charge the cost to the Contractor.

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

The locations of the utilities shown in the plans have been certified to a Quality Level C according to the CFLHD Utility Data Quality Certification requirements available at <https://highways.dot.gov/federal-lands/rw-util/cfl>.

**Table 107-1
Status of Utilities**

	Utility Type	Company	Contact Name	Phone Number / Email	Status ⁽¹⁾
1	Gas & Electric	PG&E (Electric Dept.) [Gas Dept.]	Mike Jarvis (Melissa Clark) [Andrew Marchesano]	831-479-3187 MCCR@pge.com Andrew.Marchesano@pge.com	4
2	Water	City of Santa Cruz	Main Phone Neal Christen Jason Segal	831-420-5200 NChristen@santacruzca.gov jsegal@santacruzca.gov	4
3	Phone	AT&T	Terry Hamlin	831-728-3641	4
4	Sanitary Sewer	County of Santa Cruz Dept. of Public Works	Ashleigh Trujillo Bryan Wardlow	831-454-2786 Bryan.Wardlow@santacruzcountyca.gov	4
5	Farm Irrigation	Rodoni Farms	Danny Rodoni	831-246-0688	4

(1) Status is defined as follows:

Status 1: The utilities are in conflict with the project and require relocation by others during construction.

Status 2: The utilities are in conflict with the project and require relocation by the Contractor during construction.

Status 3: The utilities are in conflict with the project and require relocation by others before construction.

Status 4: The utilities are located within the project right-of-way but require no relocation.

107.03 Bulletin Board. Provide a weatherproof bulletin board of suitable size and construction for continuous display of posters and other information required by the contract. Erect and maintain the bulletin board at a conspicuously accessible location on the project and remove and dispose of it after project final acceptance.

Display the following documents on the bulletin board:

(a) Equal Employment Opportunity Commission (EEOC), *Know Your Rights: Workplace Discrimination is Illegal* poster according to FAR Clause 52.222-26 Equal Opportunity;

(b) Form FHWA 1022, *Notice* that the project is subject to Title 18, U.S.C., Section 1020 poster;

(c) Department of Labor, Wage and Hour Division (WHD), WHD 1321, *Employee Rights Under The Davis-Bacon Act* poster (regarding proper pay);

(d) Department of Labor, OSHA, *Job Safety and Health It's The Law* poster, according to CFR Title 29, Part 1903;

(e) "General Wage Decision" contained in the contract;

(f) Company equal employment opportunity policy, according to FAR Clause 52.222-27 Affirmative Action Compliance Requirements for Construction;

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

(g) OSHA, Emergency telephone numbers (in areas where 911 is not available), according to CFR Title 29, Part 1926.50(f);

(h) Department of Labor, WHD Publication, *Employee Rights and Responsibilities Under the Family and Medical Leave Act* poster according to CFR Title 29, Part 825.300(a);

(i) WHD 1462, Employee Polygraph Protection Act poster; and

(j) National Labor Relations Act (NLRA), *Employee Rights Under The National Labor Relations Act* poster according to Executive Order 13496.

107.04 Railroad Protection. Do not cross railroad tracks, with vehicles or equipment, except at existing and open public grade crossings.

Obtain a Right of Entry Permit, including payment of permit fee(s), from the Santa Cruz County Regional Transportation Commission (SCCRTC) and from Progressive Rail prior to mobilization at the Palustrine Emergent Wetland site. Comply with the terms of the permits for crossing the railroad tracks to access the site. Provide a copy of permits to the CO. Allow for 60 days review after a complete application is accepted by SCCRTC and Progressive Rail.

For permits issued by the SCCRTC, use the website portal below:

<https://scc.railprosspermitting.com/Login>

For permits issued by Progressive Rail, use the website portal below:

<https://www.progressiverail.com>

107.05 Responsibility for Damage Claims. Indemnify and hold harmless the Government, its employees, and its consultants from suits, actions, or claims brought for injuries or damage received or sustained by a person, persons, or property resulting from the construction operations or arising out of the negligent performance of the contract.

Procure and maintain until final acceptance of the contract, liability insurance of the types and limits specified below. Obtain insurance from companies authorized to do business in the appropriate state. Ensure the insurance covers operations under the contract whether performed by the Contractor or by subcontractors.

Before work starts, submit “*certificates of insurance*” certifying that the policies will not be changed or canceled until 30 days’ written notice has been given to the Government. Insurance coverage in the minimum amounts set forth below does not relieve the Contractor of liability in excess of the coverage.

Carry insurance conforming to the following minimums:

(a) **Worker’s compensation insurance.** Minimum required by law.

(b) **Comprehensive or commercial general liability insurance.**

(1) Personal injury and property damage coverage;

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

- (2) Contractual liability coverage;
- (3) Completed operations liability coverage;
- (4) \$2,000,000 combined single limit for each occurrence; and
- (5) \$4,000,000 general aggregate limit.

(c) **Automobile liability insurance.** \$1,000,000 combined single limit for each occurrence.

107.06 Contractor's Responsibility for Work. Assume responsibility for all work until final acceptance, except as provided in Subsection 106.06. This includes periods of suspended work. Protect the work against injury, loss, or damage from all causes whether arising from the execution or non-execution of the work. Maintain public traffic according to Section 156.

Rebuild, repair, restore, and make good losses, injuries, or damages to any portion of the work. This includes losses, injuries, or damages caused by vandalism, theft, accommodation of public traffic, and weather that occurs during the contract.

The Government will only be responsible for costs attributable to repairing or replacing damaged work caused by declared enemies and terrorists of the Government and cataclysmic natural phenomenon. The Government will not be responsible for delay costs, impact costs, or extended overhead costs.

107.07 Furnishing Right-of-Way. The Government will obtain right-of-way.

107.08 Sanitation, Health, and Safety. Follow the requirements of FAR Clause 52.236-13 Accident Prevention, Alternate 1. Submit an accident prevention plan.

Observe rules and regulations of Federal, state, and local health officials. Do not allow workers to work in surroundings or under conditions that are unsanitary, hazardous, or dangerous.

Admit OSHA inspectors or other legally responsible officials involved in safety and health administration to the project work site upon presentation of proper credentials.

Report accidents on forms furnished by the Government or with prior approval, on forms used to report accidents to other agencies or insurance carriers. Maintain an OSHA Form 300, *Log of Work-Related Injuries and Illnesses* and make it available for inspection.

Install a reverse signal alarm audible above the surrounding noise level on motorized vehicles having an obstructed view and on earth-moving and compaction equipment.

Institute a litter control program during construction to eliminate the accumulation of trash. Collect all trash so that wildlife is not attracted to the area. Dispose of the collected trash at least mid-week and at the end of the work week.

107.09 Legal Relationship of the Parties. In the performance of the contract, the Contractor is an independent contractor. The Contractor's independent contractor status does not limit the Government's general rights under the contract. No Government employee or a business organization owned or

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

substantially owned or controlled by one or more Government employees may be a contractor.

107.10 Environmental Protection. Comply with the following:

(a) Federal Water Pollution Control Act (Clean Water Act) 33 USC § 1251 et seq.

(1) Do not operate equipment or discharge material within the boundaries of wetlands and the waters of the United States as defined by the Federal and state regulatory agencies. Permits are issued by the U.S. Army Corps of Engineers according to 33 USC § 1344 and delegated by the agency having jurisdiction. If an unauthorized discharge occurs:

(a) Prevent further contamination;

(b) Notify appropriate authorities and the CO; and

(c) Mitigate damages.

(2) Construct and maintain barriers in work areas and in material sources to prevent sediment, petroleum products, chemicals, and other liquids and solids from entering wetlands or waters of the United States. Remove and properly dispose of barrier collected material.

(3) Do not revise terms or conditions of permits without the approval of the issuing agency.

(4) Do not ford running streams with construction equipment. Obtain approval from the CO to use temporary bridges or other structures whenever crossings are necessary.

(5) Locate machinery servicing and refueling areas away from streambanks, wetlands, shorelines, lakes, and reservoirs to reduce the possibility and minimize the impacts of accidental spills or discharges.

(b) Oil and hazardous substances. Submit a hazardous spill plan as required by Federal, state, or local regulations at least 2 days before starting work. Where a hazardous spill plan is not required submit a "*Spill Prevention, Control, and Countermeasure (SPCC) Plan*".

Describe preventative measures including the location of refueling and storage facilities and the handling of hazardous material. Describe actions to be taken in case of a spill. Identify personnel, equipment, and resources available to address spill prevention and response.

Conduct environmental training program to communicate the risk for accidental spills, environmental concerns and appropriate work practices, including spill prevention and response measures to all field personnel prior to construction.

Do not use equipment with leaking fluids. Repair equipment leaks immediately. Keep absorbent material manufactured for containment and cleanup of hazardous material on the job site. Sand and soils are not approved absorbent materials.

Notify the CO of hazardous spills. Report the spill to the appropriate federal, state, and local authorities as required by the SPCC plan or hazardous spill plan.

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

Create and maintain a vehicle and equipment maintenance log for the project. Update the log monthly and provide copies to the CO.

(c) Dirt, plant, and foreign material. Remove dirt, plant, and foreign material from vehicles and equipment before mobilizing to work site. Prevent introduction of noxious weeds and non-native plant species into the work site. Follow applicable Federal land management agency and state rules and regulations. Maintain cleaning and inspection records.

All vehicles and equipment entering the project area must be clean of noxious weeds and free from oil leaks and are subject to inspection. Thoroughly wash construction equipment, including the undercarriage and any surface where soil containing exotic seeds may exist. Allow the CO to inspect each piece of equipment before entering the project. Provide the cleaning and inspection records to the CO.

(d) Clearances for Contractor-selected, noncommercial areas. Contractor-selected, noncommercial areas include material sources, disposal sites, waste areas, water sources, haul roads, and staging areas located outside project construction limits and permitted commercial areas. Allowed commercial areas include enterprises or developed areas providing same type material or use over the last 2 years with appropriate permits and agreements. Use rock, sand, gravel, earth, subsoil, or other natural materials from a Contractor-selected non-commercial materials source that has been certified free of noxious weeds. Materials imported into the project limits which do not include a noxious weed free certification may be rejected and ordered to be removed from the project limits. The CO has the discretion of requesting inspection of certified materials by a third party and rejecting the use of the source if noxious weeds or seeds thereof are found to be present.

Before using a Contractor-selected, noncommercial areas, submit the following for approval:

(1) Description, schedule, and map of area.

(2) Documentation of compliance with applicable laws, rules, and regulations.

(3) Owner approval for the area use. If use of Federal land is proposed, submit an approval letter or special use permit from the applicable Federal land management agency.

(4) Legal compliance for the area use. Submit documentation showing compliance with applicable tribal, state, and local laws including permits or other approvals issued for the area use.

(5) Any required certifications.

(e) Project-specific commitments.

(1) At the beginning of each workday or prior to using construction equipment, check for the presence of wildlife in compliance with Section 107.12 Environmental Training. If wildlife found is a listed or special status species, contact the biological monitors for assistance for each encounter. Do not move or have any contact with the encountered wildlife.

(2) Plastic safety fencing is not permitted for wildlife exclusion.

(3) Monofilament erosion control matting is not permitted for temporary or permanent installation.

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

(4) Equip all construction equipment with properly fitting mufflers and engine shrouds in accordance with the manufacturer's specifications. Where feasible, use electrical power to run air compressors and similar tools. Comply with California State law for idling requirements.

(5) Position stationary equipment such as motors, pumps, generators and compressors over drip pans. Position equipment parked overnight or for considerable time over drip pans or absorbent materials.

(6) Groundwater is not permitted for use in dust control.

107.11 Protection of Forests, Parks, and Public Lands. Comply with the rules and regulations of the state fire marshal, conservation commission, Federal land management agency, or other authority having jurisdiction governing the protection of land including or adjacent to the project.

Do not burn. Comply with the fire prevention plan included in the Appendix. The CO will order the emergency suspension of operations when conditions are unsafe as determined by the CO and the land management agency.

107.12 Environmental Training. Provide environmental training to employees and subcontractors working on the project. Provide training to staff prior to beginning construction related activities. A Worker Environmental Awareness Training pamphlet for archeological, cultural, and wildlife resources is provided in the Appendix. Provide the name(s) of monitors or qualified individuals conducting the training. Maintain a log of employees that have received the training and the date received. Provide a copy of the log to the CO. Provide an updated log as new staff receive the training.

107.13 Wildlife surveys, monitoring and protection

This subsection describes the requirements for surveying and monitoring during construction for various species located within the project limits. Refer to Section 623 for qualification requirements for biological monitors. The biological monitor(s) is required to lead this section of Environmental Training for on-site project staff.

California Red-legged Frog and San Francisco Garter Snake. Prior to the commencement of ground disturbing activities, prepare a construction monitoring plan for California Red-legged Frog and San Francisco Garter Snake. Develop the monitoring plan to be consistent with the USFWS protocols, including type of exclusion fencing. Include locations to be protected with exclusion fencing, locations requiring monitoring and method(s) of monitoring. Submit the plan to the CO for review. Allow 30 days for review.

Prior to ground disturbing activities, conduct surveys by a qualified biologist, in accordance with 623.03, for the California Red-legged Frog and San Francisco Garter Snake within suitable habitats and install exclusion fencing at the locations identified in the monitoring plan. Do not measure exclusion fencing for payment.

The biologist performs monitoring during all ground disturbing activities within suitable habitat for California Red-legged Frogs at locations defined in the approved monitoring plan. Immediately dispose of removed vegetation. If vegetation must be stockpiled and hauled offsite at

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

a later date, loading of vegetation into haul vehicle must be done under the supervision of a biological monitor.

Prior to the initiation of work activities each day, construction personnel will check under vehicles and equipment for California Red-legged Frogs.

If invasive aquatic species such as bullfrogs and crayfish are encountered, the biological monitor(s) will remove the aquatic species from the construction limits of the project in accordance with the approved monitoring plan.

The CO may issue a stop work order if notified by the Biological Monitor(s) that current work activities may result in an impact to special status species.

Migratory Birds. If grading operations at the Palustrine Emergent Wetland site occur between September 16 – January 31, a survey for migratory birds is not required. If grading operations at the Palustrine Emergent Wetland site occurs between February 1 – September 15, a migratory bird survey performed by a qualified biologist is required. Conduct surveys within 7 days of proposed construction activities.

If the biologist identifies breeding birds utilizing the proposed Palustrine Emergent Wetland site, soil disposal area, or surrounding area, the biologist, in coordination with the CO, will establish buffers appropriate to the observed nesting species. Conduct no work in buffer zones established by the biologist during nesting activities.

Section 108. — PROSECUTION AND PROGRESS

108.01 Commencement, Prosecution, and Completion of Work

A preconstruction conference will be held after the contract is awarded and before starting work. Seven days before the preconstruction conference, submit copies of the preliminary work plan according to Section 155.

Limit operations as follows:

- (a)** Perform environmental surveys as required by Section 107.
- (b)** Refer to Section 107 for various project permit requirements.
- (c)** See Section 105 for plant material sources, contractor staging areas, and restrictions.
- (d)** Refer to Section 156 for maintaining adjacent public access.
- (e)** Limit hours of operation to be between 8:00am – 7:00pm Monday – Friday and from 9:00am – 4:00pm Saturday – Sunday.

Perform no work except to maintain traffic control devices, erosion control devices, the roadway driving surface, and to control dust during the listed holidays and surrounding days as shown in Table 108-1.

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

Table 108-1
Holidays and Surrounding Days

Holiday	Time	Remarks
Birthday of Martin Luther King, Jr.	Noon Friday to 6:00 a.m. Tuesday	—
Washington's Birthday	Noon Friday to 6:00 a.m. Tuesday	—
Memorial Day	Noon Friday to 6:00 a.m. Tuesday	—
Juneteenth National Independence Day	Noon June 18 to 6:00 a.m. June 20	If June 19 falls on a Saturday, do not work the preceding Friday. If June 19 falls on a Sunday, do not work the following Monday.
Independence Day	Noon July 3 to 6:00 a.m. July 5	If July 4 falls on a weekend, Friday, or Monday, do not work the weekend. If July 4 falls on a Saturday, do not work the preceding Friday. If July 4 falls on a Sunday, do not work the following Monday.
Labor Day	Noon Friday to 6:00 a.m. Tuesday	—
Columbus Day	Noon Friday to 6:00 a.m. Tuesday	—
Veterans Day	Noon November 10 to 6:00 a.m. November 12	If November 11 falls on a Saturday, do not work the preceding Friday. If November 11 falls on a Sunday, do not work the following Monday.
Thanksgiving Day	Noon Wednesday to 6:00 a.m. Monday	—
Christmas Day / New Year's Day	Noon December 23 to 6:00 a.m. January 2	If December 23 or January 1 falls on a Monday, do not work the adjacent weekend and do not work on December 23. If January 1 falls on a Friday, do not work the weekend.

Schedule at least 2 non-workdays out of every 14 days. The selected non-workdays do not need to be consecutive, but they must be scheduled. Notify the CO at least 2 weeks before changing the scheduled days off.

The CO may grant written approval for exemptions to scheduled days off for specific project operations and for periods of limited duration.

The CO will issue the NTP before commencement of any work. The completion date is May 1, 2031 to include 5-years of monitoring and maintenance to meet plant survival requirements. See Section 108.05 for interim completion dates.

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

108.02 Labor. Follow the requirements of FAR Clause 52.222-6 Construction Wage Rate Requirements and 52.222-41 Service Contract Labor Standards.

Adjacent or virtually adjacent work sites are defined to be work sites within ½ mile of the project. Application of Construction Wage Rate Requirements (Davis-Bacon Act) for work sites beyond ½ mile of the project will be determined by the CO.

108.03 Subcontracting. Subcontracting does not relieve the Contractor of liability and responsibility under the contract and does not create any contractual relation between subcontractors and the Government. The Contractor is liable and responsible for actions or lack of action of subcontractors.

Within 14 days of subcontract award, submit a completed SF 1413 and 1413S. Complete Part I for each Subcontractor, and include Part II when the Subcontractor performs on-site work. Complete other forms that may be required by the Government to show the work subcontracted and the total dollar amount of the subcontract. Submit the above required information for each Subcontractor at lower tiers.

In FAR Clause 52.219-8, Utilization of Small Business Concerns and FAR Clause 52.232-27 Prompt Payment for Construction Contracts, the term "*subcontracts*" includes on-site and off-site work and supply contracts.

108.04 Determination and Extension of Contract Time. Follow the requirements of FAR Clause 52.211-13 Time Extensions.

(a) Definitions.

(1) Time impact analysis. The procedure by which the Contractor demonstrates the effect of specific time impacts on the overall construction schedule. Time impacts may result in an increase or decrease in contract time.

(2) Float. The amount of time between when an activity "*can start*" (the early start) and when an activity "*must start*" (the late start).

(b) Time impact analysis. Comply with the applicable contract clauses when requesting a time extension. Notify the CO in writing within 7 days after identifying a time impact.

Submit a time impact analysis and revised construction schedule within 14 days after the end of the time impact event for which notice has been given. Include the following:

(1) A title page or header block with:

(a) Contract number;

(b) Project number and name;

(c) Contractor name;

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

- (d) Current fixed completion date;
 - (e) Date of submittal; and
 - (f) Consecutive number for each analysis.
- (2) State the impact that requires a time impact analysis:
- (a) CO proposed or directed contract modification;
 - (b) Contractor proposed contract modification;
 - (c) Weather delay; or
 - (d) Other Government caused delay.
- (3) A copy of the most current approved construction schedule existing before the impact.
- (4) A detailed narrative describing each impact event. Describe impacts to each affected activity in the construction schedule. Include the following:
- (a) Contract clauses under which the request is being made;
 - (b) Cause of the impact;
 - (c) Start date of the impact;
 - (d) Duration of the impact; and
 - (e) Methods to be employed to re-sequence or reschedule the work to mitigate the impact. Discuss the feasibility of re-sequencing future work to mitigate delay. Re-sequencing or rescheduling of work will be at no additional cost to the Government. Include corresponding rationale and assumptions of measures which increase the cost of mitigating the impact.
- (5) A revised construction schedule to show the impact of the activities identified, including re-sequencing which would mitigate the delay.

(c) Time extensions. Only delays or modifications that affect critical activities or cause noncritical activities to become critical will be considered for time extensions.

If a CPM schedule is used, no time extension will be made for delays or modifications that use available float as shown in the most current approved construction schedule existing before the impact.

No time extension will be made for a claim that states insufficient time was provided.

For delays due to weather, demonstrate that the weather was unusually severe based on the most recent 10 years of historical data according to FAR Clause 52.212-4 Contract Terms and Conditions—Commercial Products and Commercial Services.

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

If a quantity variation described in Subsection 109.06(e) results in an increase in the time necessary for completion, the Contractor may request, in writing, an extension of time as provided within this Subsection.

(d) Execution of the time impact analysis. Incorporate accepted logic changes or time extensions into the construction schedule update by the next monthly submittal.

108.05 Failure to Complete Work on Time. Follow the requirements of FAR Clause 52.211-11 – Liquidated Damages-Supplies, Services, or Research and Development. Liquidated damages will be assessed for each day beyond the time allowed to complete the contract.

Two interim completion dates for the project are shown in (a) and (b) below. Substantial completion of the work associated with each interim completion date will result in an incentive payment of \$500 per calendar day up to a maximum amount of \$10,000 per interim completion date. Failure to substantially complete the work within each timeframe described below will result in the assessment of disincentives at a rate of \$500 per calendar day.

(a) Bureau of Land Management Property: Complete all work required for cattle exclusion fencing, selective clearing, and initial plantings by the interim completion date of February 26, 2027.

(b) California State Park Property: Complete all work required for selective clearing, site grading, and initial plantings and seeding by the interim completion date of February 25, 2028.

108.06 Stop Work Order. Follow the requirements of FAR Clause 52.236-13 Accident Prevention and FAR Clause 52.242-14 Suspension of Work. The CO may order the performance of the work to be stopped, either in whole or in part, for such periods deemed necessary including, but not limited to, the following:

(a) Weather or soil conditions considered unsuitable for prosecution of the work; or

(b) Failure of the Contractor to:

(1) Correct conditions unsafe for the workers or the general public;

(2) Carry out written orders given by the CO; or

(3) Perform provisions of the contract.

Section 109. — MEASUREMENT AND PAYMENT

109.01 Measurement of Work. Take and record measurements and perform calculations to determine pay quantities for invoicing for work performed. Take or convert measurements of work according to U.S. Customary measures.

Unless otherwise specified, measure when the work is in-place and complete according to the contract. Measure the actual work performed, except do not measure work outside the design limits or other adjusted or specified limits (staked limits). Measure structures to the lines according to the plans or to approved lines adjusted to fit field conditions.

Take measurements as described in Subsection 109.02 unless otherwise modified by the Measurement Subsection of the Section controlling the work being performed.

Measurement of quantities for payment for the individual pay items will be based on the contract price for each pay item according to Table 109-1.

Table 109-1
Decimal Accuracy of Quantities for Payment

Contract Unit Price	Decimal Accuracy of Quantities for Payment
Less than \$1.00	0 decimal
\$1.00 to \$100.00	1 decimal
Greater than \$100.00	2 decimals

Decimal precision for measurement is one decimal beyond accuracy of quantities for payment.

Remeasure quantities if it has been determined that a portion of the work is acceptable, but has not been completed to the lines, grades, and dimensions shown in the plans or established by the CO.

Prepare, sign, and submit measurement notes and supporting field note documentation using an approved format. Unacceptable measurement notes will be rejected and returned. Correct rejected measurement notes and resubmit.

Prepare, sign, and submit electronic measurement notes (pay notes and supporting field documentation) using Masterworks. Unacceptable measurement notes will be electronically rejected and returned. Correct rejected measurement notes and resubmit electronically.

Include the following information in the measurement notes:

- (a) Project number and name;
- (b) Line item number, pay item number, and description;
- (c) Date the work was performed;
- (d) Location of the work;

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

- (e) Measured quantity;
- (f) Calculations made to arrive at the quantity;
- (g) Supporting sketches and details as needed to clearly define the work performed and the quantity measured;
- (h) Names of persons measuring the work;
- (i) Identification as to whether the measurement is interim or final; and
- (j) Signed certification statement by the persons taking the measurements and performing the calculations, that the measurements and calculations are correct.

109.02 Measurement Terms and Definitions. Unless otherwise specified, the following terms are defined as follows:

(a) Acre. 43,560 square feet. Make longitudinal and transverse measurements for area computations horizontally. Do not make deductions from the area computation for individual fixtures having an area of 500 square feet or less.

(b) Contingent sum. Perform only the work authorized by written order. The estimated cost of the contingent sum work is approximate and is considered the maximum cost for the required work. The quantity to be paid will be equivalent to the costs incurred. Submit paid invoice receipts as documentation.

(c) Contract quantity. The quantity to be paid is the quantity listed in the bid schedule. The contract quantity will be adjusted for authorized changes that affect the quantity or for errors made in computing this quantity. If there is evidence that a quantity specified as a contract quantity is incorrect, submit calculations, drawings, or other evidence indicating why the quantity is in error and request in writing that the quantity be adjusted.

(d) Cubic foot and cubic yard. Measure by one of the following methods:

(1) Average end area method. Take cross-sections of the original ground. Use design or staked templates to determine end areas. Do not measure work outside of the lines or slopes established by the CO.

If a portion of the work is acceptable but is not completed to the established lines and slopes, retake cross-sections or comparable measurements of that portion of the work. Use the remeasurements to calculate new end areas.

Compute the quantity using the average end areas multiplied by the horizontal distance along a centerline or reference line between the end areas. Deduct quantities outside the designed or staked limits.

(2) Finite element analysis method. Use digital terrain modeling to determine the difference between existing and constructed terrain surfaces.

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

(e) **Day.** A 24-hour period starting and ending at midnight. Round portions of a day up to the full day.

(f) **Each.** One entire unit. Measure the actual number of units completed and accepted.

(g) **Gallon.** The quantity may be measured by the following methods:

(1) **Measured volume container.** Use an approved container with a verified volume.

(2) **Metered volume.** Use an approved metering system.

(3) **Commercially-packaged volumes.** Use the volume as identified on the commercially-packaged product.

(4) **Measured by mass.** Use an approved weighing device.

When asphalt material is measured by the gallon, measure the volume at 60 °F or correct the volume to 60 °F using recognized standard correction factors.

(h) **Hour.** 60 minutes. Measure the actual number of hours ordered by the CO and performed by the Contractor. Round portions of an hour up to the next half hour. Measure time in excess of 40 hours per week at the same rate as the first 40 hours.

(i) **Linear foot.** As applicable, measure the work along its length from end-to-end, parallel to the base or foundation, along the top, along the front face, or along the invert. Do not measure overlaps.

(j) **Lump sum.** Do not measure directly. The bid amount is complete payment for all work described in the contract and necessary to complete the work for that pay item. The quantity is designated as "All". Estimated quantities of lump sum work shown are approximate.

(k) **M-gallon.** 1000 gallons. Measure according to Subsection 109.02(g).

(l) **Mil.** Thousandth of an inch. Use to measure thickness.

(m) **Mile.** 5280 linear feet. Measure horizontally along the centerline of each roadway, approach road, or ramp.

(n) **Month.** A month as defined by the Gregorian calendar. Measure portions of a month by prorating based on the total days worked.

(o) **Pound.** Measure according to Subsection 109.03 and 109.04. If sacked or packaged material is provided, the net weight as packed by the manufacturer may be used.

(p) **Square foot and square yard.** 1 square yard equals 9 square feet. Measurements for area computations will be made horizontally or vertically to the surface being measured. No deductions from the area computation will be made for individual fixtures having area of 9 square feet or less. Do not measure overlaps.

(q) **Thousand board feet measure.** 1000 board feet. Measurement equal to 1000 feet of wood that is 12 inches wide and 1 inch thick.

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

(r) Ton. 2000 pounds. Measure according to Subsections 109.03 and 109.04.

No adjustment in a contract price will be made for variations in quantity due to differences in the specific gravity or moisture content.

Use net-certified scale masses or masses based on certified volumes in the case of rail shipments as a basis of measurement subject to correction if asphalt material is lost from the car or the distributor, wasted, or otherwise not incorporated in the work. If asphalt material is shipped by truck or transport, net-certified masses, subject to correction for loss or foaming, may be used for computing quantities.

When emulsified asphalt is converted from volume to mass, use a factor of 240 gallons per ton regardless of temperature.

If the asphalt binder for asphalt concrete pavement is stored in tanks devoted exclusively to the project, base quantities on invoices. If asphalt binder for asphalt concrete pavement is not stored in tanks devoted exclusively to the project or if the validity of the quantity requested for payment is in question, base quantities on the asphalt content determined by testing.

(s) Week. A 7-day period starting and ending at the same designated time. Measure portions of a week by prorating based on the total days worked.

109.03 Not Used.

109.04 Not Used.

109.05 Scope of Payment. Payment for contract work is provided, either directly or indirectly, under the pay items listed in the bid schedule.

(a) Direct payment. Payment is provided directly under a pay item listed in the bid schedule when one of the following applies:

(1) The work is measured in the Measurement Subsection of the Section ordering the work and the bid schedule contains a pay item for the work from the Section ordering the work.

(2) The Section ordering the work references another Section for the work and the bid schedule contains a pay item for the work from the referenced Section.

(b) Indirect payment. Work for which direct payment is not provided is a subsidiary obligation of the Contractor. Payment for such work is indirectly included under other pay items listed in the bid schedule. This includes instances when the Section ordering the work references another Section for performing the work and the work is not referenced in the Measurement Subsection of the Section ordering the work.

Compensation provided by the pay items included in the bid schedule is full payment for performing contract work in a complete and acceptable manner. Risk, loss, damage, or expense arising out of the nature or prosecution of the work is included in the compensation provided by the pay items.

Work measured and paid for under one pay item will not be paid for under other pay items.

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

The quantities listed in the bid schedule are approximate unless designated as a contract quantity. Limit pay quantities to the quantities staked, ordered, or otherwise authorized before performing the work. Payment will be made for the actual quantities of work performed and accepted or material provided according to the contract. No payment will be made for work performed in excess of that staked, ordered, or otherwise authorized.

109.06 Pricing of Adjustments. Determine costs according to FAR Part 31 Contract Cost Principles and Procedures. Follow the requirements of FAR clauses providing for an equitable price adjustment.

If agreement on price and time cannot be reached, the CO may make a unilateral determination.

If the work will delay contract completion, request a contract time extension according to Subsection 108.04.

(a) Contract modification standard rates. Provide the following information to the CO with contract modification proposals.

(1) Overhead. Provide copies of the current job site and home office overhead rates for the Contractor and subcontractors that have been certified or audited by the Contractor's controller or accountant. Provide supporting data, which justifies the rates. List each cost category that is included in overhead and identify the cost pools to which overhead is applied.

(2) Equipment. Provide a complete descriptive listing of equipment to be used by the Contractor and subcontractors, including the make, model, and year of manufacturer of each piece of equipment and attachments to the base equipment. Provide the following cost information:

(a) Rented equipment. Provide current invoices to support rented or leased equipment costs.

(b) Owned equipment. Determine allowable ownership and operating costs for Contractor- and subcontractor-owned equipment using actual equipment cost data determined from the operating cost records and following the U.S. Army Corps of Engineers *Construction Equipment Ownership and Operating Expense Schedule* (CEOOES) method. If actual equipment cost data is not available, provide the CO with a statement signed by an individual that can bind the Contractor that such cost data is not available.

Provide a complete set of supporting documentation containing ownership records that are available, including purchase records, depreciation records, maintenance records, or other records that relate to the ownership and operating costs for each piece of equipment.

If actual costs cannot be determined, or are not provided at the preconstruction conference, use the rates shown in the CEOOES for the region where costs are incurred. Adjust the rates for used equipment and for other variable parameters used in the schedules. Provide the CO with supporting documentation.

Compute standby costs from approved ownership records or, if actual costs cannot be determined, according to CEOOES. Do not exceed 8 hours in a 24-hour period or 40 hours in a week. Do not include standby for periods when the equipment would have otherwise been in an idle status or for equipment that was not in operational condition.

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

(b) Proposal for forward priced work. Submit a written proposal, including price breakdown, for each line item of the work. Identify the major elements of the work, the quantity of the element, and its contribution to the proposed price. Submit additional information as requested to allow the CO to determine the reasonableness of the proposed price. Provide the following information:

(1) Direct costs.

(a) Material. Include estimated costs of material delivered to the work.

(b) Labor. Include a list of anticipated crew members and estimated work hours. Show basic hourly wage rates, fringe benefits, applicable payroll costs (such as FICA, FUTA, worker's compensation, insurance, and tax levies), paid subsistence, and travel costs for each labor classification and foreperson employed in the work.

(c) Equipment. Include documentation or invoices to support equipment costs according to Subsection 109.06(a)(2).

(d) Other direct costs. Include documentation to support other estimated direct costs (such as bonds, mobilization, demobilization, permits, and royalties).

(e) Production rates. Include estimated production rates for major elements of the work.

(f) Subcontract costs. Include supporting data as required.

(2) Overhead. Include overhead costs according to Subsection 109.06(a)(1). Limit Contractor overhead applied to subcontractor payments to 5 percent unless a higher percentage is justified.

(3) Profit. Include a reasonable profit, except when precluded by the FAR.

(c) Post-work pricing. When a contract modification is not forward priced, it requires a change order and a supplemental agreement reflecting the resulting equitable adjustment. When negotiating the price of a contract modification after all or most of the work has been performed, submit the following:

(1) Direct costs.

(a) Material. Include invoices showing the cost of material delivered to the work.

(b) Labor. Include a list of crew members and actual hours worked. Show actual wage rates, fringe benefits, applicable payroll costs (such as FICA, FUTA, worker's compensation, insurance, and tax levies), paid subsistence, and travel costs for each labor classification and foreperson employed in the adjusted work.

(c) Equipment. Include documentation or invoices to support equipment costs according to Subsection 109.06(a)(2).

(d) Other direct costs. Include documentation to support other estimated direct costs (such as bonds, mobilization, demobilization, permits, and royalties).

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

(e) *Production rates.* Include actual hours of performance daily for each labor classification and for each piece of equipment. Include production rate information reflecting the actual work occurring on an approved Contractor daily record document.

(f) *Subcontract costs.* Include supporting data as required.

(2) Overhead. Include overhead costs according to Subsection 109.06(a)(1). Limit Contractor overhead applied to subcontractor payments to 5 percent unless a higher percentage is justified.

(3) Profit. Include a reasonable profit, except when precluded by the FAR. Limit profit to 10 percent of the total cost. Due to the limited risk in post-work pricing, a lower profit percentage may be determined by a profit analysis according to FAR 15.404-4 Profit.

(d) Cost or pricing data. When the contract modification exceeds the amount indicated in FAR Clause 52.215-10 Price Reduction for Defective Certified Cost or Pricing Data, or FAR Clause 52.215-11 Price Reduction for Defective Cost or Pricing Data - Modifications, and the CO has determined that an exception does not apply, submit cost or pricing data according to Subsection 109.06(b) or (c) as applicable and as defined in FAR Subpart 2.1 Definitions, for the Contractor and each major subcontractor. See FAR Subpart 15.4 Contract Pricing and FAR Table 15-2 Instructions for Submitting Cost/Price Proposals When Certified Cost or Pricing Data Are Required for guidance.

Certify cost or pricing data according to FAR Subpart 15.4 Contract Pricing, upon completion of negotiations.

(e) Variation in estimated quantity. If the quantity of a unit-priced item is an estimated quantity and the actual quantity of the unit-priced item varies more than 15 percent above or below the estimated quantity, an equitable adjustment in the contract price may be made upon request of either party. The equitable adjustment will be based upon any increase or decrease in costs due solely to the variation above 115 percent or below 85 percent of the estimated quantity.

109.07 Eliminated Work. Follow the requirements of FAR Clause 52.243-1 Changes-Fixed-Price, Alternate II.

Work may be eliminated from the contract without invalidating the contract. The Contractor is entitled to compensation for direct costs incurred before the date of elimination of work plus profit and overhead on the direct incurred costs. Anticipated profit and overhead expense on the eliminated work will not be compensated.

109.08 Progress Payments.

(a) General. Only invoice payments will be made under this contract. Invoice payments include progress payments made monthly as work is accomplished and the final payment made upon final acceptance. Only one progress payment will be made each month. No progress payment will be made in a month in which the work accomplished results in a net payment of less than \$1,000. The CO may withhold partial progress payment according to Subsection 109.08(h) for failure to make satisfactory progress until a construction schedule or schedule update is approved.

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

(b) Invoice requirements. Submit the invoice to the Government's designated billing office with the following items:

- (1) The information required by FAR Clause 52.232-2 5(a)(3) Contractor's invoice.
- (2) A tabulation of total quantities and contract prices of work accomplished or completed on each pay item. Do not include quantities unless measurement notes for those quantities were submitted by the closing date. Do not include quantities of work involving material for which test reports required under Sections 153 and 154, or certifications required by Subsection 106.03 are, or will be, past due as of the closing date.
- (3) The certification required by FAR Clause 52.232-1 and if applicable, the notice required by FAR Clause 52.232-5(d).
- (4) The amount included for work performed by each subcontractor under the contract.
- (5) The total amount of each subcontract under the contract.
- (6) The amounts previously paid to each subcontractor under the contract.

(c) Government's receiving report. The Government's receiving report will be developed using the measurements and quantities from Pay Notes received by the CO in Masterworks and determined acceptable.

(d) Closing date and invoice submittal date. The closing date for progress payments will be designated by the CO. Include work performed after the closing date in the following month's invoice.

Submit invoices to the designated billing office by the 7th day following the closing date. Invoices received by the designated billing office after the 16th day following the closing date will not be accepted for payment processing that month. Include late, unprocessed invoice submittals in the following month's invoice.

No closing dates will be permitted from September 1 to October 5. Do not submit invoices between September 1 and October 5.

(e) Processing progress payment requests. No payment will be made for work unless measurement notes for the work are submitted by the closing date.

(1) Invoices received by the 7th day following the closing date.

(a) Proper invoices. If the invoice meets the requirements of Subsection 109.08(b), and the quantities and unit prices shown on the Contractor's invoice agree with the corresponding quantities and unit prices shown on the Government's receiving report, the invoice will be paid.

(b) Defective invoices. If the invoice does not meet the requirements of Subsection 109.08(b), or if any of the quantities or unit prices shown on the Contractor's invoice exceed the corresponding quantities and unit prices shown on the Government's receiving report, the invoice will be deemed defective, and the Contractor so notified according to FAR Clause 52.232-27(a)(2). Defective invoices will not be corrected by the Government and will be

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

returned to the Contractor within 7 days after the Government's designated billing office receives the invoice.

Revise and resubmit returned invoices by the 18th day following the closing date. The CO will evaluate the revised invoice. If the invoice is deemed proper, it will be forwarded for processing within 7 days of receipt. If the invoice still does not meet the requirements of Subsection 109.08(b), the Contractor will be so notified according to FAR Clause 52.232-27(a)(2), and no progress payment will be made that month. Correct the deficiencies and resubmit the invoice the following month.

If the revised invoice meets the requirements of Subsection 109.08(b), but still has quantities or unit prices exceeding the corresponding quantities and unit prices shown on the Government's receiving report, the Government's data for that item or work will be used. The Contractor's invoice, as revised by the Government's receiving report, will be forwarded for processing by the 23rd day following the closing date. The Contractor will be notified by the 23rd day following the closing date of the reasons for any changes to the invoice.

(2) Invoices received between the 8th and 16th day following the closing date.

(a) Proper invoices. If the invoice meets the requirements of Subsection 109.08(b), and the quantities and unit prices shown on the Contractor's invoice agree with the corresponding quantities and unit prices shown on the CO's receiving report, the invoice will be deemed proper and forwarded for processing within 7 days of receipt.

(b) Defective invoices. If the invoice does not meet the requirements of Subsection 109.08(b), the invoice will be deemed defective, the Contractor so notified according to FAR Clause 52.232-27(a)(2), and no progress payment will be made that month. Correct the deficiencies and resubmit the invoice the following month.

If the invoice meets the requirements of Subsection 109.08(b) but has quantities or unit prices exceeding the corresponding quantities and unit prices shown on the Government's receiving report, the Government's data for that item of work will be used. The Contractor's invoice, as revised by the Government's receiving report, will be forwarded for processing within 7 days of the Government's receipt of the invoice. The Contractor will be notified of the reasons for any changes to the invoice.

(f) Partial payments. Progress payments may include partial payment for material to be incorporated in the work according to FAR Clause 52.232-1 provided the material meets the requirements of the contract and is delivered on, or in the vicinity of, the project site or stored in acceptable storage places.

Partial payments for stockpiled manufactured material (aggregates) will be based on Contractor process control test results. If test results show the material to be out-of-specification, or in "reject" where statistical evaluation procedures are used, no payment for stockpiled materials will be made.

Partial payment for material does not constitute acceptance of such material for use in completing items of work. Partial payments will not be made for living or perishable material until incorporated into the project.

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

Individual and cumulative partial payments for preparatory work and material will not exceed the lesser of:

- (1) 80 percent of the contract bid price for the item; or
- (2) 100 percent of amount supported by copies of invoices submitted.

The quantity paid will not exceed the corresponding quantity estimated in the contract. The CO may adjust partial payments as necessary to protect the Government.

(g) Lump sum. If the basis for lump sum progress payments is not specified in the Section controlling the work, submit a price breakdown for use in making progress payments. Payments will be made based on the information in the price breakdown, and the work completed.

(h) Retainage. Follow the requirements of FAR Clause 52.232-16 Progress Payments. The CO may withhold, retain, or adjust the invoice after validation of the invoice as follows:

- (1) The CO may withhold full or partial progress payment until a construction schedule or schedule update is submitted according to Section 155, and according to FAR Clause 52.236-6 Progress Payments
- (2) The CO may withhold full or partial progress payment until certified payrolls are submitted according to FAR Clause 52.222-8 Payrolls and Basic Records.
- (3) The CO may withhold a maximum of 10 percent of the amount the progress payment until satisfactory progress has been made according to FAR Clause 52.232-1. Satisfactory progress includes performance of all work under the contract including submittals, schedules, certifications, reports, test results, and drawings.
- (4) The CO may withhold Liquidated Damages for failure to complete work according to Subsection 108.05 and FAR Clause 52.211-11 Liquidated Damages, -Supplies, Services, or Research and Development.
- (5) After substantial completion of the contract, the CO may retain an amount adequate for protection of the Government according to FAR Clause 52.232-16 Progress Payments

109.09 Final Payment. Follow the requirements of FAR Clause 52.232-1 Payments and FAR Clause 52.232-25 Prompt Payment.

Upon final acceptance and verification of final pay records, the Government will send an SF 1034, *Public Voucher for Purchases and Services other than Personal* (final voucher) and a release of claims document. Execute both the voucher and the release of claims and return the documents to the Government for payment. The date of approval by the Government of the final voucher for payment constitutes the date of final settlement of the contract.

If unresolved claims exist or claims are proposed, reserve the right to the claims by listing a description of each claim and the amount being claimed on the release of claims document.

Failure to execute and return the voucher and release of claims document within 90 days after receipt will

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

constitute execution of the documents and the release of claims against the Government arising by virtue of the contract. In this event, the day after 90 days from receipt constitutes the date of final settlement of the contract.

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

Section 151. — MOBILIZATION**Description**

151.01 This work consists of moving personnel, equipment, material, and incidentals to the project and performing work necessary before starting work at the project site. This work also includes obtaining permits, insurance, and bonds.

Measurement

151.02 Measure the Section 151 pay items listed in the bid schedule according to Subsection 109.02.

Payment

151.03 The accepted quantities will be paid at the contract price per unit of measurement for the Section 151 pay items listed in the bid schedule. Payment will be full compensation for the work prescribed in this Section. See Subsection 109.05.

Progress payments for mobilization by the lump sum will be paid as follows:

- (a) Bond premiums will be reimbursed from the mobilization pay item according to FAR Clause 52.232-5 Payments under Fixed-Price Construction Contracts, after receipt of the evidence of payment.
- (b) 50 percent of the pay item amount, less the amount paid under Subsection 151.03(a), will be paid after 5 percent of the original contract amount is earned from pay items (not including mobilization). The amount paid will not exceed 5 percent of the original contract amount.
- (c) 100 percent of the pay item amount, less the amount paid under Subsections 151.03(a) and 151.03(b), will be paid after 10 percent of the original contract amount is earned from pay items (not including mobilization). The amount paid will not exceed 10 percent of the original contract amount.
- (d) Any portion of the pay item amount more than 10 percent of the original contract amount will be paid after final acceptance of the interim completion date requirements in Section 108.05.

Section 152. — CONSTRUCTION SURVEY AND STAKING

Description

152.01 This work consists of surveying, staking, calculating, and recording data for the control of work (cattle exclusion fencing layout and wetland site grading). See FAR Clause 52.236-17 Layout of Work.

Construction Requirements

152.02 Qualifications. Provide technically qualified survey crews experienced in construction survey and staking. Provide personnel who can perform in a timely and accurate manner. At least 14 days before starting survey and staking work, submit a résumé for each individual.

152.03 Submittals. At the preconstruction conference, submit a price breakdown by individual tasks if construction survey and staking is paid by the lump sum for use in making progress payments.

152.04 General. Provide a crew supervisor on-site when surveying and staking is in progress. Provide survey instruments and supporting equipment that can achieve the specified tolerances.

Provide acceptable tools and supplies of the type and quality suitable for survey work. Provide stakes and hubs of sufficient length to provide a solid set in the ground with sufficient surface area above ground for necessary legible and durable markings.

Include staking activities in the construction schedule according to Section 155. Include the dates and sequence of each staking activity.

No horizontal or vertical control information will be furnished.

Record survey and measurement field data in an approved format. Submit survey and measurement data at least weekly while surveys are being conducted. Field data and supporting documentation become the property of the Government upon completion of the work.

Discuss and coordinate the following with the CO before surveying or staking:

- (a) Surveying and staking methods;
- (b) Stake marking;
- (c) Grade control for wetland site grading;
- (d) Field staking data; and
- (e) Other procedures and controls necessary for the work.

Do not start work until staking data for the affected work has been approved.

Acceptance of the construction staking does not relieve the Contractor of responsibility for correcting errors discovered during the work and for bearing additional costs associated with the error.

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

Maintain legibility of stake markings for the duration of the project or until notified in writing the stakes are no longer needed. Replace stakes as necessary to ensure markings are maintained.

Remove and dispose of flagging, paint, lath, stakes, and other staking material after the project is complete.

Compute and provide calculations supporting pay quantities. Measure quantities within the tolerances established by the CO according to Section 109.

152.05 Survey and Staking Requirements. Perform survey, staking, recording of data, and calculations as necessary to construct the project. Survey and set stakes to the tolerances shown in Table 152-1. Reset stakes and hubs as required and maintain in an acceptable condition for the duration of the project or until notified they can be removed. Notify the CO if errors are discovered.

(a) Control points. Set durable monuments for survey control that uniquely identify the points according to Subsection 107.02 and Section 621.

Provide the GPS localization results or total station check shot data at least 10 days before starting construction layout work. The CO may order the GPS localization calibration and associated 3D model to be broken into two or more zones to maintain the localized relationship between control points and original ground.

(b) Cattle Exclusion Fencing. Perform the following:

- (1)** Set adequate reference stakes for the layout and construction of the cattle exclusion fencing shown in the plans.
- (2)** Conduct site visit with CO to review reference stakes and make field adjustments approved by the CO prior to beginning fence installation.
- (3)** Survey installed fence and gate locations for quantity verification and include with as-built information.

(c) Wetland Mitigation Site Grading and Soil Disposal Area. Perform the following:

- (1)** Before ground disturbance occurs, set adequate reference stakes for the wetland mitigation site and soil disposal area boundaries shown in the plans. Use an approved method to verify existing ground elevations of the wetland mitigation site and soil disposal area and submit survey data as directed.
- (2)** Set stakes for the pothole locations shown in the plans and record the existing ground elevation and depth to clay soil layer. Submit survey data as directed.
- (3)** Set adequate stakes within the wetland mitigation site for removal of top layer of soil as shown in the plans.
- (4)** After top layer of soil is removed from the wetland mitigation site, use an approved method to verify finished ground elevations and submit survey data as directed.

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

(d) Miscellaneous survey and staking. Survey and stake other work as directed to the proper location and required tolerances. Propose staking increments and tolerances for approval if not shown in Table 152-1.

Table 152-1
Construction Survey and Staking Tolerances⁽¹⁾

Staking Phase	Horizontal, feet (±)	Vertical, feet (±)
Control points set from existing control points	0.03	$0.01 \times \sqrt{N}^{(2)}$
Mapping & topography	0.16	0.16
Cattle Exclusion Fencing	1.00	n/a
Wetland Site Grading	0.16	0.16

(1) At statistical 95 percent confidence level. Tolerances are relative to existing Government control points.

(2) N is the number of instrument setups.

152.06 Acceptance. Construction survey and staking will be evaluated under Subsections 106.02 and 106.04.

Survey notes will be evaluated under Subsection 106.02.

Measurement

152.07 Measure the Section 152 pay items listed in the bid schedule according to Subsection 109.02 and the following as applicable:

When measuring survey and staking by the hour, do not measure time spent in making preparations, traveling to and from the project site, performing calculations, plotting cross-sections and other data, and processing computer data.

Do not measure re-establishing missing control points or stakes after construction operations have begun.

Payment

152.08 The accepted quantities will be paid at the contract price per unit of measurement for the Section 152 pay items listed in the bid schedule. Payment will be full compensation for the work prescribed in this Section. See Subsection 109.05.

Progress payments for lump sum pay items will be prorated based on total work completed under this Section.

Section 153. — CONTRACTOR QUALITY CONTROL

Description

153.01 This work consists of planning and implementing a construction quality process to ensure work conforms to the contract. This work also includes inspection and documentation, and process control. See FAR Clauses, 52.246-2 Inspection of Supplies-Fixed Price, 52.246-4 Inspection of Services-Fixed Price and 52.246-12 Inspection of Construction.

This work also consists of using Masterworks to prepare electronic CDRs and measurement notes (pay notes and supporting field documentation), including entering labor, equipment, subcontractors, and inspection records into the system.

Construction Requirements

153.02 Qualifications. At least 14 days before starting work, submit documentation of the following for approval:

(a) **QCM.** Provide a QCM with documented authority to stop non-compliant work or work that results in non-compliance with contract requirements.

Provide a QCM with at least 3 years' experience in areas of inspection, management, supervision, and QC on mitigation planting projects of similar type and scope;

153.03 Quality Control Plan. Develop and submit a QCP for approval at least 14 days before starting a Section of work. Include the work of subcontractors, material suppliers, and technical services suppliers. Do not perform work unless the QCP for that Section is approved. Approval does not imply that the QCP will result in contract compliance.

For each Section of work, include the following:

(a) **QC personnel.** Provide the name, authority, responsibilities, and qualifications of the QCM and other personnel directly involved in inspection.

(b) **QC procedures.** Describe the inspection and other activities to be performed for each phase of work in Subsection 153.06. Include methods, schedules, and equipment.

Include the following for materials to be inspected:

(1) Pay item;

(2) Brief operational work plan including, but not limited to, the locations, crews, equipment, and proposed methods to complete the work. Describe the plan for staging, disposal, and storage areas.

Include the following in the plan for each Section of work:

(a) The process to ensure the completed work conforms to contract requirements.

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

- (b) The inspection frequency to ensure the process remains valid or work is being performed according to the established process.
- (3) Personnel responsible for performing the inspection; and
- (4) Proposed reporting formats.
- (c) **Records.** Describe the reporting format for inspection, certification, and daily reports.
- (d) **Subcontractors and suppliers.** Include the work of all subcontractors. If a subcontractor is to perform work under this Section, explain how the subcontractor's inspection plan will interface with the Prime Contractor first tier subcontractors and lower tier subcontractors and organizations, and the CO.

Revise the QCP if contract quality requirements are not achieved, or changes occur in the contract, work processes, or personnel.

Modifications or additions may be required to any part of the plan that is not adequately covered. Acceptance of the quality control plan will be based on the inclusion of the required information. Acceptance does not imply any warranty by the Government that the plan will result in consistent contract compliance. It remains the responsibility of the Contractor to demonstrate such compliance.

153.04 Quality Control Manager. Provide a QCM who is on site while contract work is being performed. The QCM may perform other roles on the project including managing and superintending the project. Provide a QCM with no responsibilities for performing operations on the project.

Do not use an alternate QCM for more than 3 consecutive days unless approved.

153.05 Certifications and Submittals. For materials or work accepted by certification according to Subsection 106.03, review all certifications to ensure compliance with the requirements of the contract before incorporating materials into the work and provide a signed copy of the reviewed certification to the CO. According to FAR Subpart 46.407, materials or work without proper certification will be rejected in writing, and payment for such material or work will be withheld until proper certification has been provided to the CO.

153.06 Prosecution of Work.

Address each of the subjects shown for each phase of construction:

(a) Preparatory phase.

- (1) In a preparatory phase meeting, review the contract requirements for the work; the process for constructing the work; and the plan for inspecting, measuring, and reporting the work. Include the project superintendent, QCM, work foreperson, and the CO in the meeting. Schedule and conduct a preparatory meeting for each type of work to be performed at least one week prior to beginning the work.
- (2) Review and coordinate certifications, submittals, plans, drawings, and permits.
- (3) Verify the capabilities of equipment, material, and personnel. Provide training as necessary.

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

(4) Review accuracy of the surveying and staking.

(b) Start-up phase.

(1) In a start-up phase meeting, review the contract requirements and the processes for constructing the work with the personnel who will be performing the work. Invite the CO, project superintendent, QCM, and inspectors of the work being performed, and the personnel directly supervising and performing the work. Review the planned inspection and reporting requirements with the quality control personnel responsible for the inspection. Explain the reporting procedures to be used if defective work is identified. Conduct a start-up meeting for each type of work to be performed upon beginning the work.

(2) Inspect and report start-up work according to the QCP and ensure the work conforms to the contract.

(c) Production phase.

(1) Inspect and report according to the QCP and evaluate the acceptability of the work produced.

(2) Identify and correct deficiencies.

(3) Request Government inspection.

(4) Provide feedback on processes and deficiencies. Identify root causes of deficiencies and make timely and effective changes to work processes to prevent repeated deficiencies.

153.07 Not used.

153.08 Records. Maintain complete inspection records by pay item number and make them accessible to the CO.

(a) QC and construction operations reports. For each day of the contract, prepare a CDR using Masterworks. Enter initial data for Labor/Equipment and Subcontractors before beginning any work. Maintain and update the Labor/Equipment and Subcontractors data to reflect ongoing changes as they occur. Report operations or items of work separately, with manpower and equipment assigned to each operation separately. Detail inspection results, including deficiencies observed and corrective actions taken. Complete a CDR for each contractor and subcontractor working that day.

Enter the following data into Masterworks:

(1) Subcontractor data.

(2) Labor/Equipment.

(a) All manpower and equipment, including contractor and subcontractors. Complete all data fields.

(b) Labor: Type/classification, move-in date, move-out date, hourly rate, the contractor or subcontractor, and name.

(c) Equipment: Type/classification, move-in date, move-out date, make, model, and year of equipment manufacture.

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

Certify all CDRs using the following statement:

"I certify that the information contained in this record is accurate and that work documented herein complies with the contract. Exceptions to this certification are documented as a part of this record."

Submit certified CDRs that have been signed by a person who has both responsibility for the inspection system and signature authority.

Submit the record and certification within 24 hours of the work being performed. If the CDR is incomplete, in error, or otherwise misleading, the CDR will be rejected and returned within Masterworks with corrections noted. Correct rejected CDRs and resubmit the revised CDR within 24 hours. If chronic errors or omissions occur, correct the procedures by which the records are produced.

153.09 Acceptance. The Contractor's QC process will be evaluated under Subsections 106.02 and 106.04 based on its demonstrated effectiveness to ensure work conforms to the contract. Performance of the work may be stopped according to Subsection 108.06, either in whole or in part, for failure to comply with the requirements of this Section.

The Government may charge to the Contractor the cost of any additional inspections required when the work being inspected is found not to comply with contract requirements during the initial inspection. Work stop orders, due to recurring deficiencies of work required by this Section, will be rescinded after the Contractor demonstrates to the CO that changes were made to the quality control plan and system which resulted in the correction of those deficiencies. There will be no adjustment in the contract time, or payments to the Contractor for any impacts, delays, or other costs due to any periods of work stoppage resulting from failure to comply with the requirements of this Section.

CDRs will be evaluated under Subsection 106.02.

Measurement

153.10 Measure the Section 153 pay items listed in the bid schedule according to Subsection 109.02.

Payment

153.11 The accepted quantities will be paid at the contract price per unit of measurement for the Section 153 pay items listed in the bid schedule. Payment will be full compensation for the work prescribed in this Section. See Subsection 109.05.

Progress payments for Contractor quality control by the lump sum will be paid as follows:

(a) 25 percent of the pay item amount, no more than 0.5 percent of the original contract amount, will be paid after the Contractor quality control plan is accepted; qualified quality control supervisor and inspection personnel are in position to provide quality control activities; and the work being inspected has started.

(b) 65 percent of the pay item amount will be prorated for payment based on the completed portion of the total work not including the original 25 percent completed under (a) above.

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

(c) The remaining portion of the pay item amount will be paid when all inspections, submittals, and reports are complete and accepted.

Section 155. — SCHEDULES FOR CONSTRUCTION CONTRACTS

Description

155.01 This work consists of scheduling, monitoring, and reporting the progress of construction activities.

155.02 Definitions.

(a) Baseline construction schedule. The first approved construction schedule submitted after the preliminary work plan, showing the order to perform the work, and the dates for starting and completing the work. Once approved the baseline construction schedule cannot be changed.

(b) Construction schedule. Designated a Bar Chart Method (BCM).

(1) BCM schedule. A BCM schedule includes a progress bar chart, written narrative, and a submittal list.

A progress bar chart is a time-scaled graphic representation of a project displaying the overall sequencing of work. Each activity includes an activity number, description, start and finish date, and duration. BCM schedules list predecessor activities that must be finished before each activity can be started.

(c) Construction schedule update. An update to the previously approved construction schedule that shows the completed work and the remaining work necessary to complete the project and includes progressing of the schedule, changes to the schedule logic, changes to the schedule activities, changes to the activity durations, or any other modification to the schedule of planned work. A construction schedule update may show construction being completed at a date other than the contract completion date.

(d) Preliminary work plan. A narrative and schedule diagram of contract activities for the first 60 days after the NTP.

Construction Requirements

155.03 General. Follow the requirements of FAR Clause 52.236-15 Schedules for Construction Contracts.

Designate an individual who will be the authorized representative responsible for the schedule. Submit the name of the authorized representative with the preliminary work plan.

Failure to include elements of work in the schedule that are required for performance of the contract, even if approved by the Government, will not excuse the Contractor from completing the work required by the contract completion date.

Approval of the construction schedule does not relieve the Contractor of the responsibility to schedule the work to meet the contract requirements.

Do not suppress or sequester float. Do not alter planned durations and sequencing to give the appearance

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

that activities do not have float. Float time within the construction schedule is not for use or benefit of either the Government or the Contractor but is a jointly owned project resource available to both parties as needed to meet the contract completion date. Either party has the full use of float until it is depleted.

In case of discrepancy, the approved electronic format governs over native file format of the construction schedule.

155.04 Preliminary Work Plan. Do not start work, except mobilization, without an approved preliminary work plan. No progress payments will be made until a preliminary work plan has been approved. Include the following:

- (a) A title page stating contract number, project number, project name, Contractor name, contract completion date, date of submittal, submittal number, and "Preliminary Work Plan";
- (b) A schedule diagram showing work activities;
- (c) Description of proposed work within each activity including the type and quantity of equipment, labor, and material to be used;
- (d) Description of site mobilization;
- (e) Description of planned production rates for each applicable pay item by pay item quantities;
- (f) Description of the number of workdays per week, holidays, number of shifts per workday, and number of hours per shift. Include all calendars used in the schedule module;
- (g) Estimate of idle and partially idle periods within each activity, showing start and finish dates;
- (h) Description of expected and critical delivery dates for equipment and material that can affect completion of the project. Describe the fabrication and delivery of key and long-lead time procurement activities;
- (i) Name of vendor, supplier, or subcontractor to perform an activity. State assumptions made in scheduling their work;
- (j) A list of shop drawings, sample submittals, and review times; and
- (k) A list of drawings, permits, and other submittals by pay item number required for the entire contract period.

Submit a preliminary work plan at least 7 days before the preconstruction conference. Within 14 days of submission, the preliminary work plan will be approved or rejected. If rejected, submit a revised plan within 3 days.

155.05 Baseline Construction Schedule. Submit a construction schedule within 45 days of the NTP. Include a title page or header block for each component with the contract number, project number, project name, Contractor name, contract completion date, date of submittal, and submittal number. Show all

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

activities including those in the preliminary work plan.

Include activities for permit review and approval. Refer to the permitting agencies to determine an appropriate duration for permit application review, permit approval, and distribution of permits.

Prepare and submit a BCM construction schedule.

(a) BCM schedule. Include the following:

(1) Progress bar chart.

- (a)* Use a time scale to graphically show the percentage of work scheduled for completion during the contract time;
- (b)* Define and relate activities to the pay items;
- (c)* Show activities in the order the work will be performed, including submittals, submittal reviews, fabrication, and delivery;
- (d)* Highlight activities that are controlling factors in the completion of the work;
- (e)* Show the time needed to perform each activity and its relationship in time to other activities;
- (f)* Show the total time to complete work; and
- (g)* Provide enough space for each activity to allow two additional plots parallel to the original time span plot. Use one space for revision of the planned time span, and one for showing actual time span achieved.

(2) Written narrative.

- (a)* Estimate start and finish dates of each activity;
- (b)* Describe work to be done within each activity including the type and quantity of equipment, labor, and material to be used;
- (c)* Describe the location on the project where each activity occurs;
- (d)* Describe planned production rates for each applicable pay item by pay item quantities;
- (e)* Describe the number of workdays per week, holidays, number of shifts per workday, and number of hours per shift. Include all calendars used in the schedule;
- (f)* Estimate of idle and partially idle periods within each activity, showing start and finish dates;
- (g)* Describe expected and critical delivery dates for equipment or material that can affect completion of the project. Describe the fabrication and delivery of key and long-lead time procurement activities;

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

(h) Identify the vendor, supplier, or subcontractor to perform the activity. State assumptions made in the scheduling their work; and

(i) Describe critical completion dates for maintaining the construction schedule.

(3) Submittal list. Submit a list of drawings and other submittals by pay item number required for the entire contract period. Include the following information for each drawing or submittal:

(a) Pay item number and description;

(b) Planned date of initial submittal; and

(c) Planned date of CO's initial response.

Submit the construction schedule according to Subsection 104.04.

Within 14 days of submission, the construction schedule will be approved or rejected. If rejected, submit a corrected schedule within 7 days. If rejected again, schedule a meeting within 3 days to discuss corrections and submit another construction schedule.

If a construction schedule is not received within 45 days after the NTP is issued, the CO will withhold the progress payment according to Subsection 109.08(h) until the construction schedule is received.

The approved construction schedule with supporting documents becomes the baseline construction schedule.

155.06 Construction Schedule Update. Submit a construction schedule update by the 15th day of each month, or on the date established by the CO.

Submit the construction schedule update according to Subsection 104.04.

Do not make changes to the schedule logic, activities, or critical path without prior approval.

Within 7 days of submission, the construction schedule update will be approved or rejected. If rejected, submit a corrected construction schedule within 7 days. If rejected again, schedule a meeting within 3 days to discuss corrections and submit another construction schedule.

If an acceptable construction schedule update is not received by the 15th day of the month, or on the date established by the CO, the CO will withhold 10 percent of each progress payment according to Subsection 109.08(h)(3), until a construction schedule update is approved. Failure to receive approval of a prior construction schedule update does not relieve the Contractor of the responsibility to meet the requirement to provide construction schedule updates each month.

Submitting a proposed construction schedule update is not considered a notification of delay or of other basis for change. Continue to submit monthly construction schedule updates until a construction schedule update is approved.

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

Approval of a construction schedule update showing completion past the fixed completion date will not alter the fixed completion date or affect the Government's rights under the contract.

(a) Update summary. Provide a summary of the changes and progressing made to the construction schedule since the last approved construction schedule update.

(b) Written narrative. Submit an update of the written narrative identifying adjustments made to each operation since the last update. Include the following:

- (1) Equipment added or removed from the project;
- (2) Changes to labor (such as added crews or subcontractors);
- (3) Work shift adjustments (such as extended hours or added shifts);
- (4) Changes to anticipated periods of suspension or holiday;
- (5) Changes in material delivery;
- (6) Early completion of individual work items;
- (7) Efficiency of operations;
- (8) Changes to the critical path and logic revisions;
- (9) Delays and disruptions that are ongoing as of the date of the proposed construction schedule update. If delays or disruptions have occurred, propose efforts to return the project to a schedule consistent with the contract requirements including the commitment of additional resources or other appropriate action; and
- (10) Notification that completion date or other contract requirements will not be met, if applicable.

(c) Submittal list. Provide an update to the submittal list. Include the following:

- (1) Actual dates for submittals;
- (2) Proposed dates for anticipated submittals;
- (3) CO's responses (approved, rejected, or approved as noted); and
- (4) Comments.

(d) BCM schedule updates.

(1) Progress bar chart. Update the progress bar chart. Include the following:

- (a) Actual start and planned finish dates of activities underway;
- (b) Remaining duration of uncompleted activities;

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

(c) Actual finish dates of completed activities;

(d) Revised construction activities affected by impacts addressed with a time impact analysis. Include a revised completion date for the total work; and

(e) The initial time span plot adjacent to the updated time span plot for each work activity.

155.07 Progress Meetings. Schedule and facilitate a weekly progress meeting. Invite the CO, superintendent, QCM, and other personnel directly supervising or managing the project.

Provide a two-week look-ahead schedule one day before the meeting. Review actual progress as compared to the planned progress and review planned activities for the upcoming 2 weeks. Discuss the status of submittals, QC documentation, contract modifications, and requests for information.

155.08 Acceptance. Construction schedules and supporting documents will be evaluated under Subsection 106.02.

Measurement

155.09 Measure the Section 155 pay items listed in the bid schedule according to Subsection 109.02.

Payment

155.10 The accepted quantities will be paid at the contract price per unit of measurement for the Section 155 pay items listed in the bid schedule. Payment will be full compensation for the work prescribed in this Section. See Subsection 109.05.

Progress payments for construction schedule by the lump sum will be paid as follows:

(a) 25 percent of the pay item amount, no more than 0.5 percent of the original contract amount, will be paid after the baseline construction schedule is approved.

(b) The remaining portion of the pay item amount will be prorated based on the total work completed in the contract.

Section 156. — PUBLIC TRAFFIC

Description

156.01 This work consists of controlling and protecting public traffic adjacent to the project, including public trail usage. See FAR Clause 52.236-13 Accident Prevention.

Construction Requirements

156.02 Accommodating Traffic During Work. Accommodate traffic according to the California MUTCD and this Section. Ensure the safety and convenience of the public and protect the residents and property adjacent to the project. Accommodate public traffic on roads and trails adjacent to the project until the project is accepted according to Subsection 106.06(b).

156.03 Maintaining Roadways During Work. Maintain roadways as follows:

- (a) Maintain intersections and provide access to trails, roads, parking areas, residences, farms, and other features at all times.
- (b) Provide dust control by applying water or dust palliative as ordered to maintain visibility and eliminate hazardous conditions.
- (c) Remove accumulations of soil and other material from the traveled way.

If corrective action is requested and the corrective action is not taken immediately, the condition may be corrected by the CO and the cost of the corrective action deducted from monies due the Contractor.

156.04 Nighttime Operations. Perform construction operations during the hours of daylight. Daylight hours are defined as one-half hour after sunrise to one-half hour before sunset.

156.05 Acceptance. Controlling and protecting public traffic work will be evaluated under Subsection 106.02.

Measurement and Payment

156.06 Do not measure controlling and protecting public traffic for payment. See Subsection 109.05.

Section 157. — SOIL EROSION CONTROL, SEDIMENT CONTROL, AND STORMWATER POLLUTION PREVENTION PLAN

Description

157.01 This work consists of preparing and maintaining a SWPPP including non-stormwater pollution prevention. This work also consists of implementing the SWPPP including, but not limited to, furnishing, constructing, and maintaining soil erosion and sediment control devices to eliminate or minimize pollutants in stormwater discharges from the project.

Material

157.02 Conform to the following Subsections:

Fiber rolls	713.12
Filter rock	705.08
Floating turbidity curtains	713.21
General purpose tackifier	713.11(a)
Geotextile	714.01
Gravel bags	713.13
Mulch	713.05
Nonloadbearing concrete masonry units	725.07(c)
Plastic lining	713.22
Prefabricated filter insert	713.20
Rock for riprap	705.02
Rock mulch	705.07
Rolled erosion control products	713.17
Sandbags	713.14
Sediment filter bags	713.19
Seed	713.04
Silt fence	713.16
Soil and soil-aggregate materials	704.01
Temporary culvert pipe	713.15
Temporary plastic fence	710.08
Turf reinforcement mats	713.18
Water for vegetation	725.01(b)

Construction Requirements

157.03 Qualifications. Provide a SWPPP Developer, Erosion Control Supervisor, and On-Site Stormwater Lead with experience in implementing erosion and sediment control. Provide documentation that personnel meet the qualifications in the applicable Construction General Permit (CGP) or the qualifications below, whichever is more stringent. Include certifications in those states where applicable. One person may serve in more than one role if qualified.

Do not designate the project superintendent to serve in any of these roles.

Submit the following for approval as part of the SWPPP submittal:

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

(a) SWPPP Developer. A résumé describing the following:

- (1)** Have completed 40 hours of stormwater management training;
- (2)** Have 5 years of highway or equivalent experience developing SWPPPs and designing site-specific BMPs; and
- (3)** Be registered or certified in the state in which the project is located for one or more of the following:
 - (a)* Professional engineer, geologist, or hydrologist;
 - (b)* Licensed landscape architect; or
 - (c)* Other state or nationally recognized certification program for erosion and sediment control professionals.

(b) Erosion Control Supervisor. A résumé describing the following:

- (1)** Both of the following:
 - (a)* Have completed 24 hours of stormwater management training; and
 - (b)* Have 3 years of highway or equivalent construction experience that included oversight of erosion, sediment, and pollution control BMPs; or
- (2)** One of the following:
 - (a)* Meet requirements of SWPPP Developer above; or
 - (b)* Be registered or certified as a stormwater inspector from a state or nationally recognized certification program for stormwater inspectors.

(c) On-Site Stormwater Lead. A résumé describing the following:

- (1)** Both of the following:
 - (a)* Have completed 8 hours of stormwater management training;
 - (b)* Have 1 year of highway construction experience including stormwater management duties; or
- (2)** One of the following:
 - (a)* Meet requirements of Erosion Control Supervisor above; or
 - (b)* Be registered or certified as a stormwater inspector from a state or nationally recognized certification program for stormwater inspectors.

157.04 Roles and Responsibilities.

(a) SWPPP Developer. Develop the SWPPP for the project based on requirements in the CGP, plans, and specifications. Show construction phasing of erosion, sediment, and pollution prevention BMPs for all construction activities on a site plan to meet water quality regulations. Review field changes and update the SWPPP when substantial changes occur.

(b) Erosion Control Supervisor. Implement the SWPPP, which includes but is not limited to, scheduling installation and maintenance of all BMPs, job site inspections, and other activities for pollution prevention. Review all inspection reports and ensure that the SWPPP and site plan are implemented and updated.

(c) Stormwater Lead. Install and maintain BMPs, conduct site inspections, monitor water quality, and perform all on-site and reporting activities required to comply with the CGP. Inform the Erosion Control Supervisor when changes are made. The Stormwater Lead is required to be on the project site during working hours, and available during non-work hours to do inspections before, during, and after qualifying rain events.

157.05 General. Develop, submit, and manage a SWPPP according to the CGP requirements. Contract permits amend the requirements of this Section. Submit the SWPPP to the CO at or before the preconstruction conference. Allow 14 days for CO review and approval.

If soil erosion and sediment pollution control measures are not functioning as intended, take corrective action to eliminate or minimize pollutants in stormwater discharges from the project.

Provide certified weed free devices.

Do not use monofilament plastic for erosion or sediment control products.

157.06 Controls and Limitations on Work. Mark clearing limits and construct sediment perimeter control measures before ground disturbing activities. Before the start of a construction activity, implement appropriate pollution prevention measures for the activity. No soil disturbing construction activity, including clearing and grubbing, may begin on the project until the SWPPP has been reviewed and approved, the NOI has been accepted by the permitting agency and is active, and the CO has authorized on-site work to proceed.

Limit the combined grubbing and grading operations areas to 5 acres of exposed soil at one time.

157.07 Stormwater Pollution Prevention Plan. Prepare, submit, and implement a Construction SWPPP following the SWPPP template of the state in which the project is located. Include the Federal Highway Administration as an operator on the project in charge of plans and specifications. If the state does not provide a template, follow the SWPPP template provided by the Environmental Protection Agency (EPA) (<https://www.epa.gov/npdes/construction-general-permit-resources-tools-and-templates#swppp>).

Provide a SWPPP according to the CGP.

Provisions in the SWPPP are incorporated by reference into the contract. Provide an electronic copy of the SWPPP.

Based on the approved SWPPP, provide the CO a list of the planned pollution prevention devices for each of the following: erosion controls, sediment controls, and non-stormwater controls.

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

Implement the SWPPP as required throughout the construction period. Modify the erosion, sediment, and non-stormwater pollution control details and SWPPP plans as necessary to accommodate project site conditions and proposed construction operations. Update the SWPPP when modifying erosion, sediment, and non-stormwater pollution controls. Provide a copy of the updated SWPPP monthly to the CO for review.

157.08 Soil Erosion Control. Apply erosion control measures to stabilize soils and to control temporary concentrated flows throughout the duration of the project. Construct and maintain measures according to the manufacturer's recommendations.

157.09 Sediment Control. Apply sediment control measures to intercept, slow, and detain the flow of stormwater throughout the duration of the project. Construct and maintain measures according to the manufacturer's recommendations.

157.10 Non-Stormwater Controls. Apply non-stormwater measures as needed and as required in the SWPPP to control non-stormwater discharges, and to prevent or limit potential pollutants at their source from contact with stormwater throughout the duration of the project. Construct and maintain measures according to the manufacturer's recommendations.

157.11 Acceptance. Material for erosion, sediment, and non-stormwater pollution control measures will be evaluated under Subsections 106.02 and 106.03.

Construction, maintenance, and removal of erosion control, sediment control, and non-stormwater controls will be evaluated under Subsections 106.02 and 106.04.

Measurement

157.12 Measure the Section 157 pay items listed in the bid schedule according to Subsection 109.02 and the following as applicable:

Do not measure replacement erosion, sediment, or non-stormwater pollution control measures.

Do not measure additional or changed erosion, sediment, or non-stormwater pollution control measures required when planned controls are not functioning as intended and corrective actions are taken.

Payment

157.13 The accepted quantities will be paid at the contract price per unit of measurement for the Section 157 pay items listed in the bid schedule. Payment will be full compensation for the work prescribed in this Section. See Subsection 109.05.

(a) Progress payments for SWPPP will be paid as follows:

(1) 25 percent of the pay item amount will be paid on the approval of the SWPPP and upon receipt of authorization from the permitting agency that the project permit is active.

(2) An additional 50 percent of the pay item amount will be prorated based on total work completed in the contract.

(3) The remaining portion of the pay item amount will be paid when a copy of the final SWPPP and all accompanying documentation, including inspection reports, water quality sampling results, and annual report submittals, is submitted and accepted after resolution of the final inspection punch list items.

(b) Progress payments for erosion and sediment control measures or devices will be paid as follows:

(1) 80 percent of the pay item amount will be prorated based on total work completed in the contract.

(2) 20 percent of the pay item amount will be paid at final acceptance.

Section 202. — SELECTIVE CLEARING

Description

202.01 This work consists of selective clearing to remove and control invasive exotic plants from the mitigation sites shown in the plans.

202.02 Definitions.

(a) **Selective clearing.** Clearing where some trees and vegetation are designated to remain.

Construction Requirements

202.03 General. Clear, grub, and dispose of invasive exotic plants and other vegetation designated to be removed.

Remove designated debris by methods that prevent damage to vegetation not designated to be removed.

Do not use herbicides for mitigation sites location on Bureau of Land Management (BLM) property.

At least 30 days before starting invasive exotic plant removal and control, submit a written plan with the following according to Subsection 104.06:

- (a) Method of plant removal by species for each mitigation site, including time of year for initial removal and frequency of subsequent control operations over the minimum 5-year maintenance period.
- (b) Method of transporting removed biomass and proof that the disposal site accepts invasive exotic plant waste.
- (c) List of proposed herbicides with their application rate by species and proof of registration for use by the State of California Department of Pesticide Regulation (DPR) as safe for riparian areas, wetlands, and aquatic environments.
- (d) Proof of valid herbicide applicator's license.

Remove invasive exotic plants prior to installing plants. Perform initial removal of both the above and below ground biomass of invasive exotic plants and dispose. Remove biomass using hand pulling, tools, or mechanical means. Do not burn to remove invasive exotic plants. Vegetation removal at Palustrine Emergent Wetland site can be performed with earthwork grading equipment. Protect native plants within and adjacent to the mitigation sites.

Control invasive exotic plants from reestablishing for a minimum of 5-years or until final acceptance. Control invasive exotic plants through subsequent removal operations. Do not use herbicides on mitigation sites within BLM property. Using herbicides on mitigation sites within State Parks property is allowable for herbicides registered for use by the State of California Department of Pesticide Regulation (DPR) as safe for riparian areas, wetlands, and aquatic environments. Apply all herbicides in accordance with regulations set by DPR, the manufacturer's labeled instructions, and under a valid herbicide applicator's

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

license. Locate herbicide mixing sites at existing road sites outside of the stream, riparian, and wetland areas. Only spray herbicides when wind speeds are less than 10 miles per hour.

202.04 Acceptance. Additional clearing and grubbing will be evaluated under Subsection 106.02.

Acceptance criteria for all restoration and enhancement mitigation sites is maintaining less than 5% cover of invasive exotic plants for a minimum of 5-years as documented in the Government's annual monitoring report and approved by the CO.

Measurement

202.05 Measure the Section 202 pay items listed in the bid schedule according to Subsection 109.02.

Payment

202.06 The accepted quantities will be paid at the contract price per unit of measurement for the Section 202 pay items listed in the bid schedule. Payment will be full compensation for the work prescribed in this Section. See Subsection 109.05.

Progress payments will be paid as follows:

- (a) 50 percent of the pay item amount will be paid after initial removal of invasive exotic plants.
- (b) 10 percent of the pay item amount will be paid annually, over the 5-year maintenance period (totaling 50 percent of the pay item amount), after completing each year's control of invasive exotic plants.

Section 212. — SITE GRADING

Description

212.01 This work consists of performing site grading at designated locations within specified tolerances.

212.02 Not used.

Construction Requirements

212.03 Site Preparation. Clear the area of vegetation and obstructions according to Sections 202.

212.04 Excavation and Disposal.

Prior to excavating, perform potholing shown in the Plans and submit results to CO for review and approval of excavation depths across the site.

Perform site grading to remove vegetation and soil from the proposed Palustrine Emergent Wetland site to the depths approved by the CO.

Place removed vegetation and soil in the designed disposal area shown in the Plans with depths up to 18-inches and on top of existing vegetation.

212.05 Not Used.

212.06 Acceptance. Site grading work will be evaluated under Subsections 106.02 and 106.04.

Measurement

212.07 Measure the Section 212 pay items listed in the bid schedule according to Subsection 109.02.

Payment

212.08 The accepted quantities will be paid at the contract price per unit of measurement for the Section 212 pay items listed in the bid schedule. Payment will be full compensation for the work prescribed in this Section. See Subsection 109.05.

Section 619. — FENCES AND GATES

Description

619.01 This work consists of constructing and removing and resetting cattle exclusion fences and gates.

Material

619.02 Conform to the following Section and Subsection:

Fencing	<u>710</u>
Water for cementitious materials	725.01(a)

Construction Requirements

619.03 General. Clear along the fence line. Remove and dispose of trees, brush, logs, upturned stumps, roots of downed trees, rubbish, and debris. Perform clearing with minimum disturbance to the terrain outside the fence line.

Perform survey staking per Section 152.05(b) and conduct site visit with CO to review reference stakes and make field adjustments approved by the CO prior to beginning fence installation.

Schedule the fence installation, provide temporary fence, or other adequate means to prevent livestock from entering the project work area or adjoining properties.

Construct cast-in-place concrete for corner post installation using bagged concrete mix meeting the requirements of ASTM C387 with a 28 day strength of 4,000 psi.

619.04 Cattle Exclusion Fences and Gates.

(a) Wire fences and gates.

(1) Posts. Excavate holes for posts as shown in the plans. Space posts at intervals shown for the type of fence being installed. Measure post spacing interval parallel to the existing ground slope. Set posts in a vertical position.

Metal T-posts may be driven. Set metal corner, gate, end, and pull posts in concrete.

Install corner posts at changes in alignment of 30 degrees or more. Where new fence joins an existing fence, set end or corner posts and attach as approved.

(2) Braces. Limit fence runs to no more than 650 feet between adjacent corner braces, gate braces, end braces, or line braces. Install line braces at uniform intervals so the distance between any two braces is 650 feet or less. Construct braces before placing the fence wires on posts.

(a) Metal braces. Provide corner posts and pull posts with two braces, one each direction from the post in the main fence line. Provide end posts and gate posts with one brace in the line of the fence. Attach metal braces to the metal end, corner, pull, and gate posts as shown in the plans.

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

(3) Barbed wire and Barbless wire. Place barbed wire and barbless wire on the side of the post facing away from the mitigation area. Tightly stretch and fasten barbed wire and barbless wire to the posts.

Apply tension according to the manufacturer's recommendations using a mechanical stretcher or other device designed for such use. Do not use a motor vehicle to stretch the wire.

Splicing of barbed wire and barbless wire between posts is allowed provided no more than two splices, spaced at least 50 feet apart, occur in a run of fence. Use wrap or telephone type splices for the barbed and barbless wire with each end wrapped around the other wire for at least six complete turns.

(4) Fastening barbed wire and barbless wire. End the barbless wire and barbed wire at each end, corner, gate, and pull post. Wrap each line of barbed wire and barbless wire around the post and then itself with at least four turns.

Fasten each strand of barbed wire and barbless wire to each line post. Use wire ties or clamps to fasten the wires to metal posts. Securely splice tie wires to the fence on both sides of the post so there are two loops behind the post and one loop in front.

At grade depressions, alignment angles, and other locations where stresses tending to pull posts from the ground or out of alignment are created, snub or guy the wire fence. Attach the guy wire to each strand of barbed wire and barbless wire to maintain the entire fence in its normal shape. Attach the guy wire to a deadman anchor buried no more than 24 inches in the ground or to an approved anchor at a point that best serves to resist the pull of the wire fence. Deadman may also be fastened to posts. Place the deadman anchors at locations as directed.

Where required, install vertical cinch stays as shown in the plans. Twist the wire to allow weaving into the horizontal fence wires to provide rigid spacing. Weave barbed wires and barbless wires as applicable, into the cinch stay.

(5) Gates.

(a) Wire gates. Construct wire gates of the same material as the fence and as shown. Provide a taut and well-aligned closure of the opening, that can be readily opened and closed by hand.

619.05 Not used.

619.06 Not used.

619.07 Temporary Fence. If necessary, construct temporary fence to keep livestock off the project. Maintain the temporary fence during construction of the project or until the fence is directed to be removed. Dispose of temporary fence.

619.08 Not used.

619.10 Acceptance. Material for fences and gates will be evaluated under Subsections 106.02 and 106.03.

Construction of fences and gates will be evaluated under Subsections 106.02 and 106.04.

Measurement

619.11 Measure the Section 619 pay items listed in the bid schedule according to Subsection 109.02.

Do not measure clearing along the fence line or disposal of material for payment.

Payment

619.12 The accepted quantities will be paid at the contract price per unit of measurement for the Section 619 pay items listed in the bid schedule. Payment will be full compensation for the work prescribed in this Section. See Subsection 109.05.

Section 622. — RENTAL EQUIPMENT

Description

622.01 This work consists of providing and operating equipment for construction work ordered and not otherwise provided for under the contract.

Construction Requirements

622.02 Rental Equipment. The CO will order in writing rental equipment for use on the project. Submit the model number and serial number for each piece of equipment before use. Make equipment available for inspection and approval before use.

Provide an operator who is skilled in running the rental equipment. Provide equipment with auxiliary attachments necessary to complete the ordered work. Maintain the equipment in good working order.

Obtain approval of the length of workday and workweek before starting work. Keep daily records of the number of operating hours for each piece of equipment. Submit records with pay notes within 24 hours of the work being performed.

622.03 Acceptance. Rental equipment work will be evaluated under Subsections 106.02 and 106.04.

Measurement

622.04 Measure the Section 622 pay items listed in the bid schedule according to Subsection 109.02 and the following as applicable:

Do not measure inoperable equipment or equipment dependent upon another piece of inoperable equipment.

Payment

622.05 The accepted quantities will be paid at the contract price per unit of measurement for the Section 622 pay items listed in the bid schedule. Payment will be full compensation for the work prescribed in this Section. See Subsection 109.05.

Section 623. — GENERAL LABOR

Description

623.01 This work consists of providing laborers for construction work, as well as specialized laborers for technical and professional services ordered and not otherwise provided. This work also includes providing associated equipment and hand tools needed to complete the work.

Construction Requirements

623.02 General. The CO will order in writing labor and specialized labor, excluding biological services, to complete work and services on the project. Provide competent workers to perform the work.

Perform biological services according to Subsection 107.10(e).

Obtain approval of the length of workday and workweek before starting work. Keep daily records of the number of hours worked. Submit records with pay notes within 24 hours of the work being performed.

623.03 Specialized Labor. Perform special labor services as follows:

(a) Survey services. Provide personnel, equipment, and materials, and perform work according to Section 152.

Survey services include performing both field survey and associated office work. The ordered work may consist of mapping and construction survey and staking. Work may include, but is not limited to, boundary surveys, setting permanent monuments and markers, preparing legal descriptions and exhibits, topographic mapping, taking cross-sections, setting construction stakes and finish grade stakes, or other miscellaneous survey and staking activities.

(b) Technical services. Provide qualified engineering personnel experienced in highway construction and design, that can perform in a timely and accurate manner.

Provide personnel with at least 2 years' recent job experience in the type of highway design and construction provided for under the contract. Provide the names and relevant experience of personnel. Provide supporting tools and equipment.

Technical services include both field work and associated office work. The ordered work may consist of, but is not limited to, conducting field investigations, engineering work, drafting, performing calculations, or other miscellaneous engineering activities.

Submit calculations, notes, and supporting documentation generated to complete the work.

(c) Biological services. Furnish a USFWS-approved biologist with a Bachelor's Degree in the biological or natural resources related field and previous experience performing similar surveys for USFWS listed wildlife species (including California Red-legged Frog and San Francisco Garter Snake). See Section 107 for the species and requirements. Submit the names and qualifications of the proposed monitor(s) to the CO for approval by USFWS.

623.04 Acceptance. General labor work will be evaluated under Subsection 106.02.

Technical services will be evaluated under Subsections 106.02 and 106.04.

Measurement

623.05 Measure the Section 623 pay items listed in the bid schedule according to Subsection 109.02 and the following as applicable:

When measuring survey services by the hour, measure survey services by the crew hour regardless of crew size. Measure time spent in performing calculations, plotting cross-sections, or processing computer or other data.

When measuring technical services by the hour, measure time spent in performing calculations, drafting, plotting cross-sections, or processing computer or other data.

Do not measure time for transportation of laborers and special laborers to and from the project site.

Payment

623.06 The accepted quantities will be paid at the contract price per unit of measurement for the Section 623 pay items listed in the bid schedule. Payment will be full compensation for the work prescribed in this Section. See Subsection 109.05.

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

Section 625. — TURF ESTABLISHMENT**Description**

625.01 This work consists of soil preparation, watering, seeding, and mulching. This work also consists of collecting, preparing, and storing seeds.

Material

625.02 Conform to the following Subsections:

Mulch	<u>713.05</u>
Seed	<u>713.04</u>
Water for vegetation	<u>725.01(b)</u>

Construction Requirements

625.03 General. Within 14 days after completion and approval of finished grades and initial plantings within the Palustrine Emergent Wetland site, apply turf establishment to those portions of the site. Do not seed during windy weather or when the ground is excessively wet, frozen, extremely dry, cloddy, hard pan, or not friable.

Develop a written plan for seed collection per 626.03.

Collect all seeds from within the mitigation sites, Wilder Ranch State Park, or Cotoni-Coast Dairies National Monument with approval from the CO and in compliance with Section 105. Prepare and store seeds until application to the mitigation site.

Commercially sourced seeds may be substituted for contractor collected seeds with proper certification that the species are from a local genetic source. The local genetic source is defined as plant material collected from San Mateo County or northern Santa Cruz County, from the western slope of the mountains, at an elevation of 0 to 1,000 feet. Submit genetic source certifications for seed substitutions to the CO for review and approval.

625.04 Preparing Seedbed. Remove weeds, sticks, stones 2 inches in diameter and larger, and other debris detrimental to application, growth, or maintenance of the turf.

Cultivate the seeding area to a minimum depth of 4 inches and prepare a firm, but friable seedbed before seeding.

Minimize soil compaction of seedbed.

625.05 Watering. Moisten seeding areas before seeding and maintain the moisture until turf is established.

625.06 Seeding. Apply the seed with hand-operated seeding methods.

625.07 Mulching. Apply the mulch with hand operated mulching methods within 48 hours after seeding.

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

625.08 Protecting and Caring for Seeded Areas. Protect and care for seeded areas including watering when needed. Repair or apply supplemental applications of seed, mulch, and water as many times as needed until vegetation is established. **Vegetation is considered established when at least 70% native plant absolute cover is attained with the plant species shown in the plans or alternative native species in an approved Corrective Action Plan according to Subsection 626.10 for a minimum of 5-years as documented in the Government's annual monitoring report and approved by the CO.**

625.09 Acceptance. Material for turf establishment will be evaluated under Subsections 106.02 and 106.03.

Placing of turf establishment will be evaluated under Subsections 106.02 and 106.04.

Measurement

625.10 Measure the Section 625 pay items listed in the bid schedule according to Subsection 109.02 and the following as applicable:

Do not measure watering, turf establishment, or supplemental applications of seed or mulch.

Do not measure seeding to restore access routes or staging areas on BLM property.

Payment

625.11 The accepted quantities will be paid at the contract price per unit of measurement for the Section 625 pay items listed in the bid schedule. Payment will be full compensation for the work prescribed in this Section. See Subsection 109.05.

Progress payments for seed collection and storage will be paid as follows:

(a) 75 percent of the pay item amount will be paid after seed collection.

(b) The remaining 25 percent of the pay item amount price will be paid after the initial seeding and mulching is complete.

Progress payments for seeding and mulching will be paid as follows:

(a) 75 percent of the pay item amount will be paid after initial seeding and mulching.

(b) The remaining 25 percent of the pay item amount price will be paid after substantial completion acceptance by the CO.

Section 626. — PLANTS

Description

626.01 This work also consists of collecting seeds and propagating plants, harvesting willow poles, and installing plants.

Material

626.02 Conform to the following Subsections:

Mulch	<u>713.05</u>
Plant material	<u>713.06</u>
Water for vegetation	<u>725.01(b)</u>

Construction Requirements

626.03 General.

Provide a botanist to supervise all field work (seed collection, willow pole harvesting, and planting) that has a California native plant Field Botanist Certification.

Develop a written plan for seed collection, plant propagation, and willow live stake harvesting and submit to CO for approval. Allow 30 days for review. Include proof of Field Botanist Certification and provisions for time of year for seed collection of each species, seed cleaning and storage, plant propagation location and expected growing durations, and willow live stake harvesting locations and storage.

Do not plant in frozen ground or when the soil is saturated, extremely dry, cloddy, hard pan, not friable, or is otherwise unsatisfactory for planting.

Provide stock with a live and fibrous root system. Do not provide container-grown stock that is pot-bound, has a top system out of proportion (larger) than the size of the container, has rooting media that does not hold together when plant is removed from the container, or has roots growing out of the container.

Dig out transplants by gently removing the root ball. Ball and burlap the root ball before moving the transplant. Ensure the attached soil root ball diameter is at least two-thirds the size of the branch spread.

Transplant shrubs and small trees after plants have gone dormant. Harvest stakes from dormant plants.

Tag each plant or groups of plants with a weatherproof tag showing species name and date of delivery.

Install plants received on site within 7 days.

Collect all plant propagules for the Riparian Forest Restoration Sites 1 through 6 from within the Cotoni-Coast Dairies National Monument with approval from the CO and in compliance with Section 105. Collect all plant propagules for the Palustine Emergent Wetland Site from within Wilder Ranch State Park with approval from the CO and in compliance with Section 105. Propagate all plant material at a nursery and implement best management practices to control or eliminate the diseases caused by Phytophthora species.

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

Commercially grown container plants may be substituted for contractor propagated plants with proper certification that the species are from a local genetic source. The local genetic source is defined as plant material collected from San Mateo County or northern Santa Cruz County, from the western slope of the mountains, at an elevation of 0 to 1,000 feet. Submit genetic source certifications for plant material substitutions to the CO for review and approval.

Prior to planting, perform Selective Clearing under Section 202.

Layout plants randomly as shown in the plans to mimic a more natural distribution and to avoid grid patterns.

626.04 Delivery. Notify the CO at least 30 days before delivery of material to allow the CO the opportunity to select material at the source. Submit certifications and complete written information concerning the source of supply for plant material at least 14 days before delivery of plants to the project.

626.05 Protection and Temporary Storage. Package plants to provide protection against weather and breakage during transit. Tie and cover plants to prevent wind damage and dehydration when transporting by open vehicle. Pack and ventilate plants to prevent sweating when transporting by closed vehicle. Keep bare root plants below 35 °F during transport.

Keep growing media moist. Protect bark, branches, and root systems from damage. Replace damaged plants including plants with cracked or crushed root balls.

Protect plants not scheduled for immediate planting as follows:

- (a) Keep bare root plants below 35 °F;
- (b) Protect plants from over-exposure to sunlight and keep moist;
- (c) Protect plants from animals and insects; and
- (d) Hold salvaged woody species no more than 7 days.

626.06 Excavation for Plant Pits and Beds. At least 14 days before planting, submit planting locations and methods of planting for approval. Mark planting locations with stakes or flagging. Remove sod, weeds, roots, and other unsuitable material from the planting site. Excavate plant pits as shown in the details of the plan set.

Loosen soil at the sidewalls and bottom of the plant pit to a depth of 6 inches before setting the plant.

Do not leave planting holes open overnight.

626.07 Setting Plants. Do not plant material until inspected and approved. Set plants approximately plumb and at the same level or slightly lower than the depth at which they were grown in the nursery or

collected in the field. Set plants as follows:

(a) Bare root stock. Place bare rooted plants in the center of the plant pit with the roots properly spread in a natural position. Work backfill soil around and over the roots, tamp as hole is being filled, and water thoroughly.

(b) Container-grown stock. Remove the container immediately before planting. Place plants in the prepared pits on tamped backfill soil. Backfill the remainder of the plant with backfill soil and tamp.

(c) Live stakes. Use a planting bar or other tool to plant live stakes in fine to medium textured soils. Make planting hole at least 24 inches deep and place one live stake in each hole. Place live stakes with the basal end pointed downward and in contact with the water table and with buds pointing upwards and the tip extending at least 5 to 7 inches above the soil surface. Backfill planting hole with soil and tamp soil around stake to ensure good soil to stem contact.

(d) Plugs. Plant plugs slightly beneath the level of the soil grade. Place soil around the plug, tamp, and water thoroughly.

626.08 Watering.

Water plants during and immediately after planting, and throughout the plant establishment period. Saturate the soil around each plant at each watering.

626.09 Mulching. Remove weeds and other live vegetation from pit and water basin areas around individual plants and from entire shrub beds. Place mulch within 24 hours after planting.

626.10 Plant Maintenance and Establishment Period. The plant establishment period for each mitigation site starts after all plantings have been completed. The plant establishment period for each mitigation site ends 5-years after all plantings have been completed or final inspection, whichever occurs later. Employ necessary means to preserve the plants in a healthy growing condition during the plant establishment period. Water, weed, prune, and protect from animals, insects, and disease during the plant establishment period. Continue to treat invasive species during the plant establishment period under Section 202. Plant maintenance includes replanting dead or diseased plants to meet the acceptance criteria in Section 626.11 at no additional cost to the Government.

An inspection of the plant material will be made annually by the Government to identify percent cover of living plants, as well as dead, dying, or diseased plants for removal and replacement. Prepare and submit Corrective Action Plan(s) for approval to address annual plant deficiencies and present remedial actions to meet acceptance criteria. During the following planting season, remove and replace identified plants in compliance with the approved Corrective Action Plan as part of the 5-year maintenance and at no additional cost to the Government. A final inspection by the Government of all plant material at the end of the 5-year establishment period will be the basis for final acceptance.

626.11 Acceptance. Material for plants (including mulch) will be evaluated under Subsections 106.02 and 106.03.

Planting of plants will be evaluated under Subsections 106.02 and 106.04.

Acceptance criteria for all restoration mitigation sites is maintaining at least 70% native plant absolute cover with the plant species shown in the plans, or alternative native species in an approved Corrective

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

Action Plan, for a minimum of 5-years as documented in the Government's annual monitoring report and approved by the CO.

Measurement

626.12 Measure the Section 626 pay items listed in the bid schedule according to Subsection 109.02.

Payment

626.13 The accepted quantities will be paid at the contract price per unit of measurement for the Section 626 pay items listed in the bid schedule. Payment will be full compensation for the work prescribed in this Section. See Subsection 109.05.

Progress payments for plantings (collection/propagation) will be paid as follows:

- (a) 50 percent of the pay item amount will be paid after initial plant collection.
- (b) The remaining 50 percent of the pay item amount price will be paid after delivery of the plant to the mitigation site.
- (c) If plants are procured from an approved certified commercially grown supplier per 626.03, then (a) and (b) above will not apply and instead 100% of the pay item amount will be paid after delivery of the plant to the mitigation site.

Progress payments for plantings (installation) will be paid as follows:

- (a) 75 percent of the pay item amount will be paid after initial planting.
- (b) The remaining 25 percent of the pay item amount price will be paid after the Government's initial quarterly (i.e. 3 months) inspection if plants appear to be viable and growing.

Progress payments for plantings (5-year maintenance period) will be paid as follows:

- (a) Up to 30 percent of the pay item amount will be paid in the 1st year of maintenance after initial planting.
- (b) An additional 25 percent of the pay item amount will be paid in the 2nd year of maintenance.
- (c) An additional 20 percent of the pay item amount will be paid in the 3rd year of maintenance.
- (d) An additional 15 percent of the pay item amount will be paid in the 4th year of maintenance.
- (e) The remaining 10 percent of the pay item amount price will be paid after the final acceptance.

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

Section 710. — FENCING

710.01 Barbed Wire. Provide galvanized wire or aluminum coated wire conforming to AASHTO M 280.

710.02 Smooth Wire. Provide smooth wire conforming to ASTM A854.

710.03 Not used.

710.04 Not used.

710.05 Fence Posts.

(a) **Steel T-Posts.** Conform to AASHTO M 281.

(b) **Steel Round Posts.** Conform to AASHTO M181, Type 1.

710.06 Not used.

710.07 Not used.

710.08 Temporary Plastic Fence. Provide plastic noncorrosive fence fabricated from polyethylene and UV stabilized for outdoor weathering. Conform to the following:

(a) Height	48 in minimum
(b) Mesh openings	3.15 to 3.35 in
(c) Color	International orange
(d) Mass	0.16 lb/ft minimum

Section 713. — ROADSIDE IMPROVEMENT MATERIAL**713.01 Not used.****713.02 Not used.****713.03 Not used.**

713.04 Seed. Conform to the Federal Seed Act, the Federal Plant Protection Act, and applicable state and local seed and noxious weed laws. Do not use wet, moldy, contaminated, or damaged seed. Provide each seed type in separate sealed containers. Clearly label each container with the following:

- (a) Name and type of seed;
- (b) Lot number;
- (c) Net mass;
- (d) Percent of purity, germination, and hard seed;
- (e) Percent of maximum weed seed content;
- (f) Seed origin;
- (g) Noxious weeds present;
- (h) Other crop seed;
- (i) Inert matter;
- (j) Name and address of seed distributor; and
- (k) Mixture percent of each component.

Inoculate legume seed with approved cultures according to the manufacturer's recommendations.

Use the seed mix shown in the Plans for seeding of the Palustrine Emergent Wetland.

Use the following seed mix for restoring disturbed access routes and staging areas on BLM property as directed by the CO (PLS = Pure Live Seed):

Seeding for BLM property disturbance areas		
Scientific Name	Common Name	Pounds PLS / acre
<i>Bromus sitchensis</i> var. <i>carinatus</i>	California brome	5
<i>Elymus glaucus</i>	Blue wildrye	10
<i>Stipa pulchra</i>	Purple needlegrass	10
<i>Trifolium wildinovii</i>	Tomcat clover	5
<i>Vulpia microstachys</i>	Three weeks fescue	20
Total		50 PLS / acre

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

713.05 Mulch.

(a) Wood fiber. Provide processed wood fiber from wood chips conforming to the following:

- (1) Colored with a green dye non-injurious to plant growth;
- (2) Readily dispersible in water;
- (3) Nontoxic to seed or other plant material;
- (4) Free of growth or germination inhibiting substances;
- (5) Free of weed seed;
- (6) Air dried to a moisture content of 12 ± 3 percent;
- (7) Packaged in new containers labeled with the manufacturer's name; and
- (8) Packaged in a condition appropriate for mixing in a homogeneous slurry suitable for application with power spray equipment.

(b) Mature compost. Provide partially decomposed organic material, (such as leaves, grass, shrubs, and yard trimmings) cured for 4 to 8 weeks. Maturity is indicated by temperature stability and soil like odor. Provide friable, dark brown, weed-free, and pathogen-free mature compost conforming to the following:

- | | |
|--|--------------------|
| (1) Carbon/nitrogen ratio | 25/1 to 35/1 |
| (2) Carbon/phosphorus ratio | 120/1 to 240/1 |
| (3) pH | 6.0 to 7.8 |
| (4) Water content | 40 percent maximum |
| (5) Particle size | |
| (a) Seeding and sodding | ½ inch maximum |
| (b) Erosion control | 1 inch maximum |
| (6) Organic material | 50 percent minimum |
| (7) Synthetic, plastic, metal, or glass material | 2 percent maximum |

(c) Wood chips. Provide wood chips from local sources including clearing. Maximum size of chips is 4 by 2 by ½ inches.

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

713.06 Plant Material. Unless otherwise specified, conform to the *American Standard for Nursery Stock*.

(a) Quality of plant material. Provide plants that are excellent representatives of their normal species or varieties. **Provide nursery grown stock that has been transplanted or root-trimmed one or more times according to the kind and size of plant. Tree band size plants may be direct-sowed into the liner size specified.** Provide plants with a normally developed branch system. Do not provide plants with disfiguring knots, sun-scald, injuries, abrasions of the bark, dead or dry wood, broken terminal growth, or other disfigurements.

Provide trees with reasonably straight stems and well branched and symmetrical branches according to their natural habits of growth.

(b) Plant names. For scientific and common plant names, conform to the United States Department of Agriculture (USDA) PLANTS Database. Clearly tag and identify plants by name and size.

(c) Grading standards. Conform to the latest edition of the *American Standard for Nursery Stock ANSI Z60.1*.

(d) Nursery inspection and plant quarantine. Provide plants that are without plant diseases and insect pests.

Comply with nursery inspection and plant quarantine rules and regulations of the states of origin and destination including Federal rules and regulations governing interstate movement of nursery stock. Provide a valid copy of the certificate of inspection with each package, box, bale, or carload shipped or otherwise delivered.

(e) Balled and burlapped plants. Provide plants from the original and undisturbed soil in which the plants were grown. Dig balled and burlapped plants to retain as many fibrous roots as possible. Wrap, transport, and handle the plants so the soil ball and small fibrous roots remain intact.

713.07 Not used.

713.08 Not used. 713.08 Not used.

713.09 Not used.

713.10 Not used.

713.11 Not used.

713.12 Fiber Rolls.

(a) Excelsior fiber rolls. Provide fiber rolls of curled excelsior fiber rolled into a cylindrical shape and encased in a tubular netting.

(b) Straw fiber rolls. Provide straw fiber rolls that are manufactured from certified weed free straw and wrapped in a tubular netting.

(c) Coir fiber rolls. Provide coir fiber rolls that are 100 percent coconut fiber rolled into a cylindrical

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

shape and encased in a tubular netting.

(d) Compost fiber rolls. Provide tubular netting filled with mature compost conforming to Subsection 713.05(e).

(e) Tubular netting for fiber rolls. Provide biodegradable tubular netting with openings no larger than $\frac{3}{8}$ inch. Provide tubular netting diameter according to the plans. Do not use monofilament netting or similar material.

713.13 Not Used.

713.14 Not Used.

713.15 Not Used.

713.16 Silt Fence.

(a) Geotextile. Conform to Table 7 of AASHTO M 288.

(b) Posts. Conform to the following:

(1) Wood posts. Conform to the following:

(a) 1½ inches by 1½ inches by 4 feet minimum dimensions;

(b) Untreated fir, redwood, cedar, or pine, cut from sound timber with no loose or unsound knots; and

(c) Pointed on end driven in ground.

(2) Steel posts. Conform to the following:

(a) 48 inches minimum length;

(b) Cross-section shape that can resist failure from lateral loads (T-shaped, U-shaped, or L-shaped); and

(c) 0.75 pound per foot minimum mass.

(c) Silt fence reinforcement. Provide a wire mesh consisting of 14-gauge steel with mesh spacing of 6 by 6 inches or prefabricated polymeric mesh of equivalent strength.

Section 717. — STRUCTURAL METAL

717.01 Structural Steel.

(a) Bolts and nuts. Conform to ASTM F1554, Grade 36 or 55, or ASTM A307 as shown in the plans. Provide nuts conforming to ASTM A563 for appropriate grade and size of anchor bolt. Lubricate galvanized nuts with a lubricant containing a visible dye.

717.06 Steel Pipe. Provide galvanized steel pipe conforming to ASTM A53, Type F, standard weight class, and plain ends for the designation specified.

717.07 Galvanized Coatings. Galvanize steel according to AASHTO M 111.

MONTEREY BAY SANCTUARY SCENIC TRAIL MITIGATION

Section 725. — MISCELLANEOUS MATERIAL

725.01 Water. Conform to the following:

(a) Water for cementitious materials. Provide water for mixing or curing cement, concrete, mortar, or grout that conforms to AASHTO M 157. Potable water of known quality may be used without testing according to ASTM C1602. Potable water is safe for human consumption as defined by the public health authority having jurisdiction.

(b) Water for vegetation. Provide water for the planting or care of vegetation that is free of substances injurious to plant life (such as oils, acids, alkalies, or salts).

Water for construction. Provide water for earthwork, dust control, and incidental construction that is free of substances detrimental to the work.



STATE	PROJECT	SHEET NUMBER
CA	CA FLAP SCR T5(1A)	C4

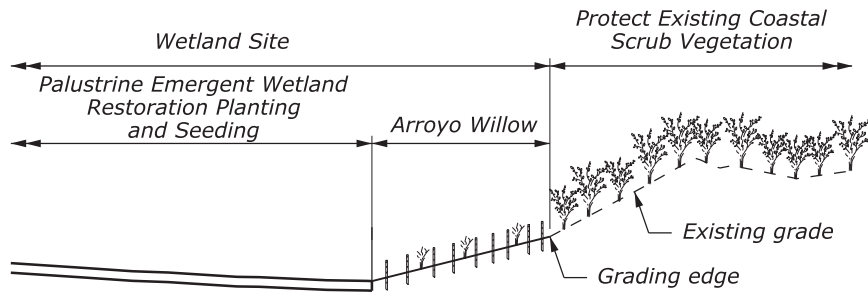
Planting Schedule for Palustrine Emergent Wetland Restoration

Scientific Name	Common Name	On Center Spacing (Feet)	Container	Number
<i>Baccharis glutinosa</i>	Salt Marsh Baccharis	5	Tree Band	564
<i>Carex densa</i>	Dense Sedge	3	Tree Band	564
<i>Carex harfordii</i>	Monterey Sedge	3	Tree Band	564
<i>Juncus balticus</i>	Baltic Rush	3	Tree Band	564
<i>Juncus effusus</i>	Bog Rush	3	Tree Band	564
TOTAL CONTAINER/TRANSPLANTED PLANTS				2820
<i>Salix lasiolepis</i>	Arroyo Willow	8	Pole Cutting	475

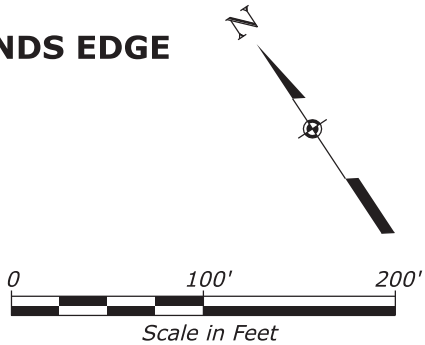
EW and Arroyo Willow Planting Site Area		
Location	Area	Unit(s)
EW Planting and Seeding	1.08	Acres
Arroyo Willow Planting and Seeding	0.13	Acres
Total	1.21	Acres

Seeding Schedule for Palustrine Emergent Wetland Restoration

Scientific Name	Common Name	Pounds PLS / acre
<i>Baccharis glutinosa</i>	Salt Marsh Baccharis	10
<i>Carex densa</i>	Dense Sedge	10
<i>Carex harfordii</i>	Monterey Sedge	10
<i>Juncus balticus</i>	Baltic Rush	5
<i>Juncus effusus</i>	Bog Rush	10
TOTAL		45



TYPICAL WETLANDS EDGE



U.S. DEPARTMENT OF TRANSPORTATION
FEDERAL HIGHWAY ADMINISTRATION
CENTRAL FEDERAL LANDS HIGHWAY DIVISION



LANDSCAPE PLAN
PALUSTRINE EMERGENT
WETLAND
(EW)

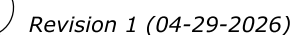
NOTES:

- See grading plan sheet D1 for site work prior to planting.
- Control invasive exotic plants from reestablishment within the wetland site in accordance with Specification Section 202.
- Arrange plants in a randomized pattern throughout mitigation site. For planting layout, see Planting Detail sheets.
- After initial plantings, apply seed and mulch in between the plantings with hand-operated methods. See table on this sheet for Palustrine Emergent Wetland seed mix. Mulch with wood chips per Section 713.05(c).

Revision 1 (04-29-2026)



1. *Install corner posts and bracing at the following locations:*
 - a. *Termination of fence line (two total posts).*
 - b. *Horizontal deflection in the fence line (three total posts).*
 - c. *Vertical sharp grade breaks in the fence line (three total posts).*
2. *Install fence termination end posts and bracing similar to gate post detail, 3-1/2" Dia. Schedule 40 Steel Corner Posts (Hot-Dipped Galvanized) with 2-3/8" Dia. Schedule 40 Steel Diagonal Brace (Hot-Dipped Galvanized).*



REGISTERED PROFESSIONAL ENGINEER
 Edwin J. Henderson
 No. 66017
 CIVIL
 STATE OF CALIFORNIA
 05-04-2026

CATTLE EXCLUSION FENCE DETAIL

SPECIAL
519-A